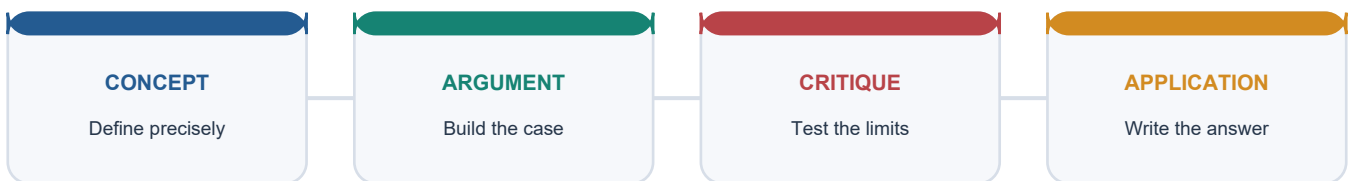


COMPLETE LEARNING SESSION

High Court and Subordinate Courts - Complete Learning Session

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Polity 21 - High Court and Subordinate Courts - Complete Topic Package

Subject: Indian Polity | GS-II + Prelims | Legal control checked: 7 September 2026

Source and boundary control

- Canonical Markdown read first: `basic/High-Court.md`, the complete Topic 21 owner, Advanced Topic 21 and bounded Supreme Court, Fundamental Rights, tribunals, Directive Principles and access-to-justice owners.
- OCR checks: *Indian Polity* by M. Laxmikanth chapter locations at PDF pages 724 and 755, with targeted checks at pages 734, 737, 756 and 758; the corresponding courseware High Court chapter was located at PDF page 709.
- Primary controls: repository-held official Constitution text; India Code statutes; official Supreme Court judgments; Department of Justice, e-Courts and PIB institutional sources.
- [CURRENT] India has 25 High Courts. The Department of Justice statement dated 1 July 2026 records 1,122 sanctioned posts, 781 working judges and 341 vacancies.
- [CURRENT] e-Courts Phase III was approved for four years from 2023 with an outlay of Rs 7,210 crore.
- [CURRENT] No All India Judicial Service exists as of 7 September 2026.
- [LIMIT] Original civil jurisdiction, court nomenclature, pecuniary limits, principal seats, permanent benches and circuit sittings are source- and State-specific; none is universalised.
- [LIMIT] Qdrant was not required because canonical Markdown, OCR PDFs and primary legal/institutional sources supplied the needed evidence.
- [LIMIT] Final local official UPSC keys were unavailable for the routed 2019 and 2021 objective questions, so no answer letter is inferred; the 2024 Set-A writ key alone is printed.
- [LIMIT] The official Legislative Department landing page intermittently returned access errors; exact Articles and amendment footnotes were controlled from the repository-held official Constitution PDF.
- [LIMIT] Old judgments were checked through official Supreme Court/JUDIS/SCR records where directly available; current programmes and vacancy data remain date-sensitive.

Learning roadmap

origin and structure

- > judges and independence
- > jurisdiction and writs
- > supervision and administration
- > Articles 233-237 district judiciary
- > specialised access institutions
- > recruitment, AIJS, pendency and digital reform
- > practice
- > optional advanced depth
- > final register notes and synchronized master flow

BASIC LEARNING SESSION

SESSION 1 - INTEGRATED JUDICIAL HIERARCHY AND CONSTITUTIONAL ORIGIN

VISUAL FIRST - CONCEPT GATEWAY

1774 Regulating Act -> 1861 High Courts Act -> 1862 Calcutta/Bombay/Madras
|
v
1950 Constitution: Supreme Court -> High Courts -> subordinate courts

Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: India uses one integrated judicial hierarchy in which High Courts are constitutional courts for States and territorial jurisdictions, while district courts form the principal trial and appellate layer below them.

Technical definition: Part VI, Chapter V contains Articles 214-231 on High Courts; Chapter VI contains Articles 233-237 on subordinate courts.

ANSWER-GRABBING LINE

The High Court is simultaneously a constitutional remedies court and the institutional head of the State judiciary.

MUST-WRITE KEYWORDS

- integrated judiciary
- Part VI
- constitutional court
- district judiciary
- judicial federalism

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: India combines national legal unity with territorially distributed constitutional adjudication.

Named evidence: Articles 214-231 and 233-237, read with the Supreme Court's appellate position.

Analysis: A litigant usually encounters constitutional legality through a territorially accessible High Court, while a common apex court preserves doctrinal coherence across the Union.

Qualification: Integration does not mean unitary administration: States retain statutory court structures and service rules within constitutional limits.

EVIDENCE

- [FACT] The first chartered High Courts at Calcutta, Bombay and Madras opened in 1862; Allahabad followed in 1866.
- [FACT] High Courts exercise constitutional, civil, criminal, appellate, supervisory and administrative functions from different legal sources.
- [FACT] The constitutional design separates High Courts from the State executive while linking them to the Supreme Court through appeal and precedent.

PRELIMS TRAP

Do not describe a High Court as merely the State's highest appellate court; Articles 215, 226, 227, 228 and 235 create distinct constitutional functions.

MAINS USE

Use the integrated-yet-decentralised design as the introduction to any answer on High Courts or district-judiciary independence.

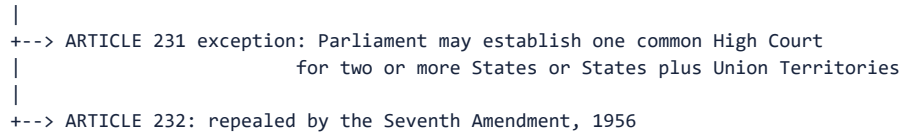
MINI RECAP

One hierarchy; multiple territorial constitutional courts; local adjudication under High Court control.

SESSION 2 - ARTICLE 214, COMMON HIGH COURTS AND THE REPEALED ARTICLE 232

VISUAL FIRST - CONCEPT GATEWAY

ARTICLE 214 default: a High Court for each State



Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Constitution states a State-wise default but permits Parliament to create a common High Court, so the number of High Courts need not equal the number of States and Union Territories.

Technical definition: Article 214 supplies the default; Article 231 authorises a common High Court; the Constitution (Seventh Amendment) Act, 1956 reorganised the provisions and repealed Article 232.

ANSWER-GRABBING LINE

Article 214 is a default rule, not a one-State-one-court numerical guarantee.

MUST-WRITE KEYWORDS

- Article 214
- Article 231
- common High Court
- Seventh Amendment
- Article 232 repealed

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: The Constitution permits shared High Court institutions without diluting each constituent territory's access to constitutional justice.

Named evidence: Articles 214 and 231 and the Constitution (Seventh Amendment) Act, 1956.

Analysis: A common High Court can pool judicial capacity and maintain regional coherence while Parliament adjusts references to Governors, legislatures and territorial jurisdiction.

Qualification: Common jurisdiction does not erase the distinct laws, executive authorities or subordinate judicial services of the participating States.

EVIDENCE

- [FACT] India has 25 High Courts as of 7 September 2026; several serve more than one State or Union Territory.
- [FACT] Article 231 permits a common court for two or more States or for States and Union Territories.
- [FACT] Article 232 is no longer operative and should not be presented as a current power.

PRELIMS TRAP

Never infer one High Court for every State from Article 214 without reading Article 231.

MAINS USE

Use common High Courts to show that constitutional federalism can share institutions while preserving territorial legal identities.

MINI RECAP

Article 214 default; Article 231 shared institution; Article 232 repealed.

SESSION 3 - ARTICLE 216 COMPOSITION, SANCTIONED STRENGTH AND CAPACITY

VISUAL FIRST - CONCEPT GATEWAY

HIGH COURT

- +-- Chief Justice
- +-- other Judges: number not fixed in the Constitution
- +-- sanctioned strength: institution-specific
- +-- working strength: date-sensitive
- +-- vacancies: sanctioned minus working, not a permanent fact

Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Every High Court consists of a Chief Justice and such other judges as are appointed; the Constitution does not prescribe a uniform court strength.

Technical definition: Article 216 states the composition, while sanctioned posts and appointments arise through institutional and governmental processes rather than a single constitutional number.

ANSWER-GRABBING LINE

A wide constitutional jurisdiction is only as effective as the bench strength and registry capacity that can exercise it.

MUST-WRITE KEYWORDS

- Article 216
- Chief Justice
- sanctioned strength
- working strength
- vacancy

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: Judicial capacity converts formal constitutional power into timely remedies.

Named evidence: Article 216 and the Department of Justice High Court strength statement dated 1 July 2026.

Analysis: Vacancies reduce available benches, delay hearings and increase administrative burdens, thereby weakening access even though jurisdiction remains legally intact.

Qualification: A dated vacancy snapshot diagnoses capacity but cannot by itself establish the causes of pendency or future strength.

EVIDENCE

- [FACT] The 1 July 2026 Department of Justice statement records 1,122 sanctioned posts, 781 working judges and 341 vacancies.
- [FACT] Each figure is expressly date-bound and must be reverified before later reuse.
- [FACT] Registry staffing, infrastructure, procedure and government litigation also affect disposal.

PRELIMS TRAP

Do not treat sanctioned strength, working strength and pendency as interchangeable statistics.

MAINS USE

Deploy the dated 2026 figures only as evidence of implementation strain after explaining the constitutional design.

MINI RECAP

Article 216 fixes composition, not a national judge count; capacity data must carry a date.

SESSION 4 - ARTICLE 217 APPOINTMENT AND THE COLLEGIUM BRIDGE

VISUAL FIRST - CONCEPT GATEWAY

CONSTITUTIONAL TEXT	JUDICIALLY DEVELOPED PROCESS
President appoints	HC Chief Justice + 2 senior colleagues initiate
after consultation with	-> State and Union inputs are processed
CJI + Governor	CJI + 2 senior-most SC judges consider HC appointment
+ HC Chief Justice for puisne judge	-> President formally appoints

Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The President appoints High Court judges after the consultations specified in Article 217; the collegium is a judicially developed method for giving those consultations institutional content.

Technical definition: Article 217 text, the Second Judges Case (1993), Third Judges Presidential Reference (1998), the Memorandum of Procedure and the NJAC judgment (2015) must be kept in separate legal layers.

ANSWER-GRABBING LINE

High Court appointments are constitutionally executive in form but judicially structured to protect decisional independence.

MUST-WRITE KEYWORDS

- Article 217
- consultation
- collegium
- judicial primacy
- Memorandum of Procedure

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: Judicial primacy seeks to prevent appointments from becoming instruments of executive control.

Named evidence: Supreme Court Advocates-on-Record Association (Second Judges Case, 1993) and Special Reference No. 1 of 1998.

Analysis: The collegium converts individual consultation into plural judicial assessment while retaining executive verification and the President's formal appointment.

Qualification: The collegium's composition is not printed in Article 217, and executive participation is not constitutionally eliminated.

EVIDENCE

- [FACT] The originating High Court Chief Justice consults the two senior-most colleagues.
- [FACT] At the Supreme Court stage, High Court appointments are considered by the CJI and two senior-most Supreme Court judges.
- [FACT] The 99th Amendment and NJAC Act were invalidated in 2015 because the enacted design damaged judicial independence; the ruling did not declare every conceivable appointments commission unconstitutional.

PRELIMS TRAP

Do not write that Article 217 itself creates a CJI-plus-two collegium.

MAINS USE

Separate text, case law and administrative procedure before evaluating transparency or delay.

MINI RECAP

President appoints; Article 217 lists consultees; Judges Cases create judicial primacy.

SESSION 5 - QUALIFICATIONS, OATH AND POST-TENURE PRACTICE

VISUAL FIRST - CONCEPT GATEWAY

ARTICLE 217(2) ELIGIBILITY

Indian citizen

+-- 10 years judicial office in India

OR

+-- 10 years advocate of one or more High Courts

ARTICLE 219 oath -> Governor or authorised person

ARTICLE 220 -> former permanent judge: SC/other HCs only, not own former HC/subordinate forums

Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A High Court judge must be an Indian citizen and satisfy one of two ten-year professional routes; there is no distinguished-jurist route.

Technical definition: Article 217(2) governs eligibility, Article 219 the Third Schedule oath, and Article 220 restricts post-tenure pleading or acting by a former permanent judge.

ANSWER-GRABBING LINE

High Court eligibility is professional and experience-based, not a political nomination category.

MUST-WRITE KEYWORDS

- citizenship
- ten years
- judicial office
- High Court advocate
- Article 220

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: The qualification design draws judges from both adjudicative service and experienced advocacy.

Named evidence: Articles 217(2), 219 and 220 and the Third Schedule.

Analysis: Dual entry broadens institutional experience while the oath binds every judge to the Constitution and impartial performance.

Qualification: The Constitution specifies neither a minimum appointment age nor a distinguished-jurist route for High Courts.

EVIDENCE

- [FACT] Judicial-office and advocacy periods are constitutionally recognised routes, subject to the computation rules in Article 217.
- [FACT] The oath is administered before the Governor or a person appointed by the Governor.
- [FACT] Article 220's practice restriction applies to a former permanent High Court judge and preserves practice before the Supreme Court and other High Courts.

PRELIMS TRAP

Do not import the Supreme Court's distinguished-jurist eligibility route into Article 217.

MAINS USE

Use the two-source recruitment design when discussing diversity, professional competence and career pathways.

MINI RECAP

Citizen plus one ten-year route; Governor-administered oath; bounded post-retirement practice.

SESSION 6 - TENURE, REMOVAL, SALARIES AND INSTITUTIONAL INDEPENDENCE

VISUAL FIRST - CONCEPT GATEWAY

SECURITY OF OFFICE

appointment -> oath -> tenure to 62

- |
- +-- resignation to President
- +-- removal: Art 218 + Art 124(4)-(5)
- +-- elevation or transfer

FINANCIAL SHIELD

Art 221 conditions + charged High Court expenses under Art 229(3)

Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A High Court judge ordinarily serves until sixty-two and cannot be removed by an ordinary executive order.

Technical definition: Article 218 applies the Supreme Court removal provisions in Article 124(4)-(5); Article 221 protects salary and service conditions, subject to constitutional exceptions including Financial Emergency.

ANSWER-GRABBING LINE

Judicial independence rests on security against retaliation, not on immunity from lawful accountability.

MUST-WRITE KEYWORDS

- retirement 62
- proved misbehaviour
- incapacity
- special majority
- charged expenditure

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: Difficult removal and protected conditions insulate adjudication from short-term political displeasure.

Named evidence: Articles 217, 218, 221, 229(3), 360 and the Judges (Inquiry) Act, 1968.

Analysis: A judge who cannot be dismissed or financially penalised by the litigant executive is better placed to enforce constitutional limits.

Qualification: Independence does not bar investigation, parliamentary removal, recusal norms, reasoned criticism or lawful institutional discipline.

EVIDENCE

- [FACT] Removal requires proved misbehaviour or incapacity and the Article 124(4) special-majority address followed by presidential order.
- [FACT] Administrative expenses of the High Court are charged on the Consolidated Fund of the State.
- [FACT] Article 360 permits constitutionally authorised salary-reduction directions during a Financial Emergency.

PRELIMS TRAP

A High Court judge is neither removable by the Governor nor subject to the President's pleasure.

MAINS USE

Organise independence under personnel, finance, jurisdiction and administration, then add accountability limits.

MINI RECAP

Tenure to 62; stringent removal; protected conditions; charged institutional expenses.

SESSION 7 - ARTICLE 222 TRANSFER OF HIGH COURT JUDGES

VISUAL FIRST - CONCEPT GATEWAY

PUBLIC-INTEREST TRANSFER

CJI-led institutional consultation

|

+-- four senior-most Supreme Court judges

+-- transferor High Court Chief Justice

+-- transferee High Court Chief Justice

|

President transfers under Article 222 -> compensatory allowance where provided

Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The President may transfer a judge from one High Court to another after consulting the Chief Justice of India.

Technical definition: Article 222 supplies the constitutional power; Sankalchand Himmatlal Sheth, the Judges Cases and the Memorandum of Procedure supply safeguards and present consultation practice.

ANSWER-GRABBING LINE

Transfer is constitutionally available for public interest but constitutionally dangerous if used as punishment.

MUST-WRITE KEYWORDS

- Article 222
- public interest
- CJI consultation
- no consent requirement
- non-punitive

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: Plural judicial consultation converts transfer from unilateral executive leverage into an institutionally reviewable process.

Named evidence: Union of India v. Sankalchand Himmatlal Sheth (1977) and Special Reference No. 1 of 1998.

Analysis: Transfers may address local entrenchment or administrative needs, yet opaque timing can undermine judicial morale and public confidence.

Qualification: The judge's consent is not an express constitutional condition, but absence of consent does not license mala fide or punitive transfer.

EVIDENCE

- [FACT] Article 222 places formal authority in the President after consultation with the CJI.
- [FACT] Current procedure uses consultation with the four senior-most Supreme Court judges and the Chief Justices of both affected High Courts.
- [FACT] Compensatory allowance may be provided when a judge is transferred.

PRELIMS TRAP

Do not confuse transfer of a High Court judge under Article 222 with posting or transfer of district judges under Articles 233 and 235.

MAINS USE

Balance mobility and national integration against transparency, judge-specific fairness and decisional independence.

MINI RECAP

President transfers; CJI-led plural consultation; consent not textual; punishment impermissible.

SESSION 8 - ACTING, ADDITIONAL AND RETIRED JUDGES: ARTICLES 223, 224 AND 224A

VISUAL FIRST - CONCEPT GATEWAY

TEMPORARY CAPACITY TOOLS

Art 223 -> Acting Chief Justice during vacancy/absence/inability

Art 224 -> Additional Judge for temporary business/arrears, maximum two years

-> Acting Judge when a permanent judge cannot perform duties

Art 224A -> retired HC judge sits on CJ request + prior President consent + judge consent

Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Constitution supplies temporary judicial capacity without converting every short-term need into a permanent appointment.

Technical definition: Articles 223, 224 and 224A create distinct offices with different triggers, authorities and duration limits.

ANSWER-GRABBING LINE

Temporary judges are constitutional safety valves, not substitutes for timely permanent appointments.

MUST-WRITE KEYWORDS

- acting Chief Justice
- additional judge
- acting judge
- retired judge
- prior presidential consent

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: Temporary appointments protect continuity when leadership, workload or judge availability creates an immediate gap.

Named evidence: Articles 223, 224 and 224A.

Analysis: Each mechanism targets a different capacity problem, allowing the court to function while preserving the ordinary Article 217 appointment structure.

Qualification: Repeated dependence on temporary appointments can mask structural vacancies and must not normalise insecure judicial tenure.

EVIDENCE

- [FACT] An additional judge under Article 224 may be appointed for a period not exceeding two years.
- [FACT] An acting judge addresses the absence or inability of a permanent judge.
- [FACT] Under Article 224A, the Chief Justice requires prior presidential consent and the retired judge's consent; while sitting, the retiree has the jurisdiction, powers and privileges of a judge but is not otherwise deemed a judge of that High Court.

PRELIMS TRAP

Article 224A concerns retired High Court judges; Article 128 is the separate Supreme Court provision.

MAINS USE

Use these provisions to distinguish emergency continuity from durable capacity reform.

MINI RECAP

223 leadership gap; 224 workload or absence; 224A consensual retired-judge recall.

SESSION 9 - ARTICLE 215 COURT OF RECORD AND CONTEMPT

VISUAL FIRST - CONCEPT GATEWAY

ARTICLE 215

court of record

- +-- authoritative record and evidentiary value
- +-- power to punish contempt of itself
 - |
 - +-- Contempt of Courts Act, 1971 regulates procedure/definitions
 - +-- constitutional source remains Article 215

Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Every High Court is a court of record and possesses constitutional contempt power.

Technical definition: Article 215 is the constitutional source; the Contempt of Courts Act, 1971 defines and regulates civil and criminal contempt without extinguishing inherent constitutional authority.

ANSWER-GRABBING LINE

Contempt protects the administration of justice, not the personal prestige of judges.

MUST-WRITE KEYWORDS

- Article 215
- court of record
- civil contempt
- criminal contempt
- fair criticism

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: Contempt jurisdiction protects obedience to orders and public confidence in adjudication.

Named evidence: Article 215 and the Contempt of Courts Act, 1971.

Analysis: The power enables a constitutional court to secure compliance and prevent conduct that substantially obstructs justice.

Qualification: Fair and accurate reporting, fair criticism and statutory defences prevent contempt from becoming a shield against democratic scrutiny.

EVIDENCE

- [FACT] Civil contempt principally concerns wilful disobedience of judgments, decrees, directions, orders, writs or undertakings.
- [FACT] Criminal contempt requires the statutory tendency to scandalise, prejudice proceedings or obstruct administration of justice.
- [FACT] The 1971 Act supplies procedure and limits while Article 215 preserves constitutional status.

PRELIMS TRAP

Do not say the 1971 Act creates the High Court's contempt power; it regulates a power already conferred by Article 215.

MAINS USE

Frame contempt as a rule-of-law power bounded by free speech, statutory defences and proportionality.

MINI RECAP

Record authority plus contempt power; institution-protecting, not reputation-protecting.

SESSION 10 - ARTICLE 225 AND THE PLURAL SOURCES OF HIGH COURT JURISDICTION

VISUAL FIRST - CONCEPT GATEWAY

HIGH COURT JURISDICTION IS NOT FROM ONE CLAUSE
Constitution: Arts 215, 225-228, 235
Letters Patent / charter history
Parliamentary statutes
State statutes within competence
CPC / criminal procedure / special enactments
High Court rules

Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: High Court jurisdiction is a layered product of constitutional provisions, pre-Constitution jurisdiction preserved by Article 225, statutes and court rules.

Technical definition: Article 225 continues existing jurisdiction and the law administered, subject to the Constitution and competent legislation, while removing the former revenue-matter restriction.

ANSWER-GRABBING LINE

The Constitution creates essential High Court powers but does not codify every original or appellate jurisdiction in one place.

MUST-WRITE KEYWORDS

- Article 225
- Letters Patent
- statutory jurisdiction
- court rules
- revenue matters

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: Jurisdictional diversity reflects historical charters and legislation rather than constitutional inconsistency.

Named evidence: Article 225, applicable Letters Patent, the Code of Civil Procedure and criminal procedure statutes.

Analysis: The preserved-and-alterable structure allows specialised jurisdiction to evolve while constitutional writ and supervisory powers remain independently protected.

Qualification: A jurisdiction found in one chartered High Court or State statute cannot be universalised to every High Court.

EVIDENCE

- [FACT] Original civil jurisdiction is charter- and statute-specific.
- [FACT] Civil and criminal appeals arise through procedural and special statutes.
- [FACT] Constitutional powers under Articles 226 and 227 are not merely inherited statutory powers.

PRELIMS TRAP

Never state that all High Courts possess identical ordinary original civil jurisdiction.

MAINS USE

Distinguish constitutional minimum powers from variable statutory and charter-based jurisdiction.

MINI RECAP

Article 225 preserves; legislation shapes; Articles 226-228 constitutionally add and protect.

SESSION 11 - ORIGINAL, APPELLATE, CIVIL AND CRIMINAL JURISDICTION

VISUAL FIRST - CONCEPT GATEWAY

CASE ENTERS HIGH COURT

- +-- ORIGINAL: only where Constitution/charter/statute confers it
- +-- APPELLATE: civil/criminal appeals under governing law
- +-- REVISION/REFERENCE: procedure-specific correction
- +-- DEATH SENTENCE: Sessions Court sentence requires High Court confirmation
- +-- ELECTION/COMPANY/ADMIRALTY/COMMERCIAL: statute-specific routes

Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: High Courts hear some matters first instance and many by appeal, but the exact mix differs by constitutional text, charter, parliamentary law, State law and procedure.

Technical definition: Original civil, criminal, testamentary, admiralty, company, commercial, election, appellate and revisional powers must be traced to their governing source.

ANSWER-GRABBING LINE

High Court jurisdiction is functionally broad but territorially and statutorily differentiated.

MUST-WRITE KEYWORDS

- original jurisdiction
- appellate jurisdiction
- revision
- confirmation
- source-specific

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: The High Court combines constitutional review with ordinary appellate correction because legality and factual adjudication meet at the State level.

Named evidence: Article 225, procedural codes, Representation of the People Act, 1951 and High Court-specific charters/statutes.

Analysis: This mixed docket permits legal uniformity across district courts but also creates workload tension between constitutional and ordinary cases.

Qualification: Original civil jurisdiction and bench arrangements are not uniform nationwide and must be stated as court-specific.

EVIDENCE

- [FACT] A Sessions Court may impose a death sentence, but execution requires High Court confirmation under criminal procedure.
- [FACT] Election petitions concerning Parliament and State legislatures are tried by High Courts under the 1951 Act.
- [FACT] Commercial Divisions in High Courts operate only where the 2015 statute and original civil jurisdiction conditions apply.

PRELIMS TRAP

Do not equate 'highest court in the State' with exclusive original jurisdiction over all major civil or criminal disputes.

MAINS USE

Use the source matrix to avoid sweeping claims and to explain workload composition.

MINI RECAP

Broad functions, variable sources, no universal original-civil template.

SESSION 12 - ARTICLE 226 AND THE ARTICLE 32 COMPARISON

VISUAL FIRST - CONCEPT GATEWAY

ARTICLE 32	ARTICLE 226
Supreme Court	High Court
Fundamental Right to move Court	constitutional power; relief discretionary
Fundamental Rights	Fundamental Rights + any other legal purpose
all-India court	territorial/cause-of-action connection
not displaced by Art 226	SC power preserved by Art 226(4)

Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 226 empowers High Courts to issue directions, orders and the five named writs for Fundamental Rights and for any other legal purpose.

Technical definition: Article 226 is wider in remedial purpose than Article 32 but territorially bounded and ordinarily discretionary; Article 32 itself is a Fundamental Right.

ANSWER-GRABBING LINE

Article 32 guarantees a national constitutional door; Article 226 places a wider legal-remedy door closer to the citizen.

MUST-WRITE KEYWORDS

- Article 226
- any other purpose
- Article 32
- discretion
- territorial nexus

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: Article 226 makes the High Court the everyday constitutional court for both rights and ordinary public-law legality.

Named evidence: Articles 32 and 226 and L. Chandra Kumar v. Union of India (1997).

Analysis: The wider subject matter allows High Courts to correct unlawful detention, jurisdictional error and public-duty failure without forcing every claimant into the Supreme Court.

Qualification: Wider purpose does not mean unlimited territory, automatic relief or an appeal over every administrative decision.

EVIDENCE

- [FACT] Both courts may issue habeas corpus, mandamus, prohibition, certiorari and quo warranto.
- [FACT] Article 226(4) expressly states that the High Court power does not derogate from the Supreme Court's Article 32 power.
- [FACT] Judicial review under Articles 226/227 is part of the Basic Structure.

PRELIMS TRAP

Say 'Article 226 is wider in purpose', not simply 'wider in every respect'.

MAINS USE

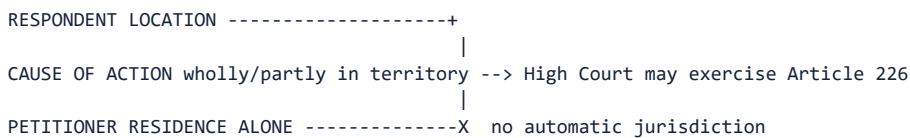
Compare nature, protected interests, territorial reach, discretion and institutional role.

MINI RECAP

Same writ vocabulary; different constitutional nature, purpose and territorial operation.

SESSION 13 - ARTICLE 226(2): TERRITORIAL CAUSE OF ACTION

VISUAL FIRST - CONCEPT GATEWAY



Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A High Court may act when the cause of action arises wholly or partly within its territory even if the government, authority or person is located elsewhere.

Technical definition: Article 226(2) uses a cause-of-action nexus; material facts necessary to establish the legal claim, not merely residence or convenience, create territorial connection.

ANSWER-GRABBING LINE

Article 226 follows the dispute's material facts, not merely the respondent's headquarters.

MUST-WRITE KEYWORDS

- Article 226(2)
- cause of action
- material facts
- territorial nexus
- forum conveniens

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: Cause-of-action jurisdiction prevents remote authority location from defeating an otherwise territorially rooted public-law claim.

Named evidence: Kusum Ingots & Alloys Ltd. v. Union of India (2004).

Analysis: The rule expands effective access where part of the legal wrong occurs locally, while allowing courts to reject artificial or trivial territorial links.

Qualification: Even when a small part of the cause arises, discretionary doctrines such as forum conveniens may make another High Court the appropriate forum.

EVIDENCE

- [FACT] Service of an order may matter only when it forms part of the material cause of action.
- [FACT] The situs of the authority is no longer the sole territorial test.
- [FACT] Residence of the petitioner by itself is insufficient.

PRELIMS TRAP

Do not confuse territorial jurisdiction with the merits or with the alternative-remedy rule.

MAINS USE

Use Kusum Ingots to explain how Article 226 balances access, federal territory and forum discipline.

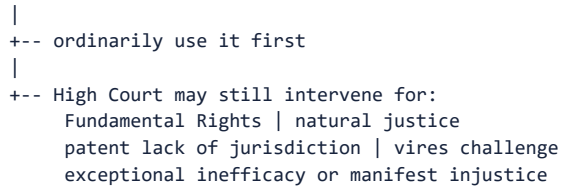
MINI RECAP

Material cause, wholly or partly; no residence-only forum shopping.

SESSION 14 - ALTERNATIVE REMEDY: RULE OF RESTRAINT AND ITS EXCEPTIONS

VISUAL FIRST - CONCEPT GATEWAY

STATUTORY REMEDY AVAILABLE?



Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The existence of an effective statutory remedy usually persuades a High Court not to entertain a writ, but it does not extinguish Article 226 jurisdiction.

Technical definition: Alternative remedy is a self-imposed rule of discretion and institutional discipline, subject to recognised exceptions.

ANSWER-GRABBING LINE

Alternative remedy regulates the exercise of Article 226; it does not delete the constitutional power.

MUST-WRITE KEYWORDS

- self-imposed restraint
- efficacious remedy
- natural justice
- lack of jurisdiction
- vires

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: Remedial sequencing respects specialised statutory forums without surrendering constitutional supervision.

Named evidence: Whirlpool Corporation v. Registrar of Trade Marks (1998) and Radha Krishan Industries v. State of Himachal Pradesh (2021).

Analysis: Ordinary insistence on appeal improves factual development and institutional efficiency, while exceptions prevent procedure from sheltering rights violations or void action.

Qualification: The recognised categories guide discretion rather than create a mechanical entitlement in every petition invoking their labels.

EVIDENCE

- [FACT] Fundamental-right enforcement, natural-justice breach, wholly without jurisdiction action and vires challenge are standard exceptions.
- [FACT] An unavailable, illusory or inefficacious remedy may not justify refusal.
- [FACT] Dismissal for alternative remedy is not a declaration that the High Court lacked constitutional jurisdiction.

PRELIMS TRAP

Never call alternative remedy an absolute jurisdictional bar.

MAINS USE

Frame it as constitutional restraint serving both institutional competence and rights protection.

MINI RECAP

Ordinary restraint; recognised exceptions; jurisdiction survives.

SESSION 15 - FIVE WRITS AND PUBLIC INTEREST LITIGATION

VISUAL FIRST - CONCEPT GATEWAY

HABEAS CORPUS -> release from unlawful detention
MANDAMUS -> perform public/legal duty
PROHIBITION -> stop lower court/tribunal before jurisdictional completion
CERTIORARI -> quash jurisdictionally defective completed order
QUO WARRANTO -> test legal authority to hold public office

PIL -> relaxed standing for genuine public injury; not a substitute for private appeals

Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The five writs are functional remedies; Public Interest Litigation modifies standing and procedure, not the constitutional source of jurisdiction.

Technical definition: Article 226 authorises directions, orders and writs in the nature of the traditional writs; PIL permits representative access where affected persons cannot effectively approach the court.

ANSWER-GRABBING LINE

A writ answer earns marks by matching remedy to legal wrong, respondent and procedural stage.

MUST-WRITE KEYWORDS

- habeas corpus
- mandamus
- prohibition
- certiorari
- quo warranto
- PIL

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: Functional writ choice converts abstract judicial review into problem-specific relief.

Named evidence: Article 226 and S.P. Gupta v. Union of India (1981) as an important standing-expansion bridge.

Analysis: Relaxed standing enables courts to address bonded labour, custody, environment and institutional exclusion where conventional individual litigation would fail.

Qualification: PIL screening must prevent publicity, political rivalry and private disputes from displacing affected persons or ordinary remedies.

EVIDENCE

- [FACT] Habeas corpus may test unlawful public or private detention.
- [FACT] Mandamus requires a public or legally enforceable duty and ordinarily does not command legislation in a particular manner.
- [FACT] Prohibition is preventive; certiorari is generally corrective; quo warranto focuses on public-office eligibility.

PRELIMS TRAP

Prohibition and certiorari are not identical merely because both address jurisdictional error.

MAINS USE

Use a remedy-function table and add PIL's access benefit plus abuse-control qualification.

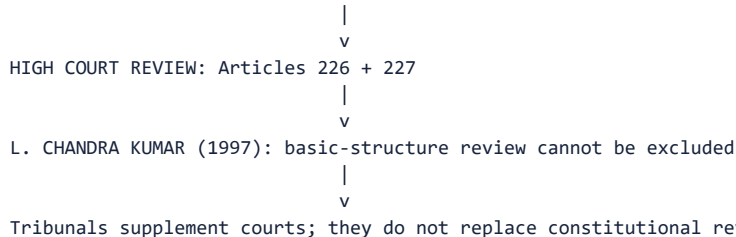
MINI RECAP

Match wrong, actor and stage; PIL widens standing, not substantive jurisdiction.

SESSION 16 - JUDICIAL REVIEW, BASIC STRUCTURE AND TRIBUNAL REVIEW

VISUAL FIRST - CONCEPT GATEWAY

PARLIAMENT / STATE LAW / EXECUTIVE ACTION / TRIBUNAL DECISION



Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: High Courts test legislative, executive and tribunal action against the Constitution and governing law.

Technical definition: L. Chandra Kumar held that review under Articles 226/227 and Article 32 forms part of the Basic Structure; tribunal decisions remain reviewable by a High Court Division Bench.

ANSWER-GRABBING LINE

Tribunalisation may rearrange first-instance adjudication, but it cannot create constitutional islands beyond High Court review.

MUST-WRITE KEYWORDS

- judicial review
- Basic Structure
- Articles 323A-323B
- tribunal
- Division Bench

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: High Court review supplies the constitutional quality control that legitimises specialised adjudication.

Named evidence: L. Chandra Kumar v. Union of India (1997) and the Madras Bar Association tribunal decisions, including the 2020 Constitution Bench ruling.

Analysis: Expert tribunals may improve specialisation, but secure tenure, balanced selection and High Court review are necessary to prevent executive-controlled substitutes for courts.

Qualification: Reviewability does not mean every tribunal decision is wrong or that a High Court should re-hear facts as a routine appeal.

EVIDENCE

- [FACT] Articles 323A and 323B authorise tribunal structures within their fields.
- [FACT] L. Chandra Kumar channels tribunal challenges through the territorial High Court before Supreme Court review.
- [FACT] Madras Bar Association rulings insist that tribunal design respect judicial independence, tenure and separation-of-powers requirements.

PRELIMS TRAP

Do not say tribunals are unconstitutional; the defect is exclusion of constitutional review or institutionally dependent design.

MAINS USE

Use the supplement-not-substitute formula with a reviewability-versus-merits distinction.

MINI RECAP

Specialisation below; constitutional review above; independence within.

SESSION 17 - ARTICLE 227 SUPERINTENDENCE

VISUAL FIRST - CONCEPT GATEWAY

ARTICLE 227 SUPERINTENDENCE

High Court

- +-- judicial correction of grave jurisdictional/procedural failure
- +-- administrative returns, rules, forms and fee tables
- +-- all territorial courts and tribunals
- +-- exception: courts/tribunals constituted under Armed Forces law

NOT a routine appeal or substitute revision

Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 227 gives every High Court superintendence over courts and tribunals within its territory, subject to the Armed-Forces-law exception.

Technical definition: The power has judicial and administrative dimensions and is exercised sparingly to keep inferior forums within authority.

ANSWER-GRABBING LINE

Article 227 preserves institutional legality, not a second factual appeal.

MUST-WRITE KEYWORDS

- Article 227
- superintendence
- grave dereliction
- jurisdictional error
- Armed Forces exception

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: Superintendence lets the High Court correct structural illegality before it hardens into systemic injustice.

Named evidence: Article 227 and Radhey Shyam v. Chhabi Nath (2015).

Analysis: The power protects hierarchy and procedural legality while leaving ordinary appeals and revisions to their statutory channels.

Qualification: Frequent merits substitution would destroy finality, overload High Courts and blur Article 227 into an appeal.

EVIDENCE

- [FACT] Article 227 reaches courts and tribunals throughout the territorial jurisdiction.
- [FACT] The High Court may call for returns and make general rules, forms and fee tables, subject to legal controls.
- [FACT] Radhey Shyam distinguishes judicial orders of civil courts from Article 226 writ treatment and locates correction under Article 227.

PRELIMS TRAP

Article 227 is not confined to administrative inspection, but it is also not an unrestricted appellate jurisdiction.

MAINS USE

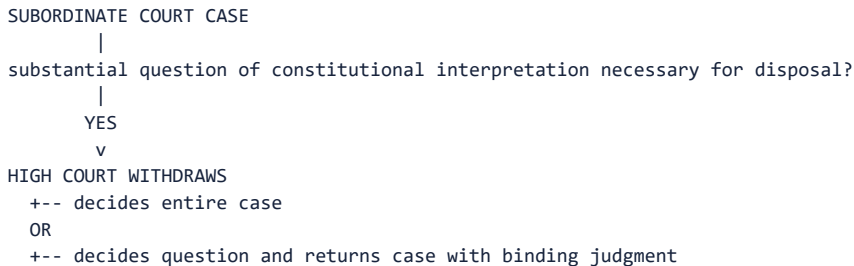
Contrast Article 226 rights/public-law review with Article 227 hierarchical supervision.

MINI RECAP

Wide supervisory source; narrow self-restraint; no routine re-appreciation.

SESSION 18 - ARTICLE 228 CONSTITUTIONAL-QUESTION TRANSFER

VISUAL FIRST - CONCEPT GATEWAY



Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 228 allows a High Court to withdraw a pending subordinate-court case when deciding it requires a substantial constitutional-interpretation question.

Technical definition: After withdrawal, the High Court may dispose of the entire case or decide the constitutional question and return the matter for disposal in conformity with its judgment.

ANSWER-GRABBING LINE

Article 228 is a constitutional-question filter, not a general transfer power.

MUST-WRITE KEYWORDS

- Article 228
- withdrawal
- substantial question
- constitutional interpretation
- return

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: Centralising substantial constitutional interpretation in the High Court protects doctrinal consistency within the State.

Named evidence: Article 228.

Analysis: A trial can continue on facts after the High Court settles the constitutional issue, avoiding both fragmented interpretation and unnecessary takeover of the whole dispute.

Qualification: The question must be substantial and necessary for disposal; ordinary legal difficulty is insufficient.

EVIDENCE

- [FACT] The source case must be pending before a subordinate court.
- [FACT] The High Court chooses between deciding the entire case and deciding only the constitutional question.
- [FACT] The returned court must dispose of the case in conformity with the High Court judgment.

PRELIMS TRAP

Do not confuse Article 228 with Article 139A inter-court transfer by the Supreme Court or ordinary procedural transfer statutes.

MAINS USE

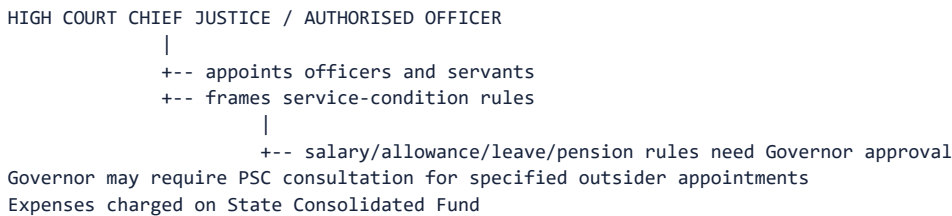
Use Article 228 to show how High Courts combine adjudication with constitutional system management.

MINI RECAP

Substantial constitutional question; withdrawal; decide all or return after ruling.

SESSION 19 - ARTICLE 229 STAFF, REGISTRY AND FINANCIAL ADMINISTRATION

VISUAL FIRST - CONCEPT GATEWAY



Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 229 gives the Chief Justice institutional control over High Court staff while preserving limited gubernatorial approval for specified financial service rules.

Technical definition: Appointments rest with the Chief Justice or authorised officer; rules on salary, allowances, leave or pension require the Governor's approval, and expenses are charged on the Consolidated Fund of the State.

ANSWER-GRABBING LINE

Judicial independence requires an independent registry, not only independent judges.

MUST-WRITE KEYWORDS

- Article 229
- registry
- Chief Justice
- Governor approval
- charged expenditure

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: Control of personnel and administration protects the court from everyday executive leverage.

Named evidence: Article 229(1)-(3).

Analysis: A court dependent on the litigant government for staff appointments or routine spending could face indirect pressure even if judges enjoy secure tenure.

Qualification: The Constitution retains bounded State participation in prescribed recruitment consultation and specified financial-rule approval.

EVIDENCE

- [FACT] The Governor may by rule require Public Service Commission consultation for specified appointments of persons not already attached to the court.
- [FACT] Fees and other moneys taken by the court form part of the Consolidated Fund of the State.
- [FACT] Article 229 is separate from Article 235 control over the subordinate judiciary.

PRELIMS TRAP

Do not state that the Governor appoints the High Court registry under ordinary executive discretion.

MAINS USE

Add registry autonomy to the usual tenure-and-salary discussion of judicial independence.

MINI RECAP

Chief Justice leads staff control; Governor role is limited; expenses are charged.

SESSION 20 - ARTICLES 230-231, UNION TERRITORIES AND BENCH ARRANGEMENTS

VISUAL FIRST - CONCEPT GATEWAY

TERRITORIAL DESIGN

Art 230 -> Parliament may extend/exclude a High Court's jurisdiction to/from a UT

Art 231 -> Parliament may establish a common HC for States and/or UTs

Art 241 -> Parliament may constitute a UT High Court or declare another court to be one

SEAT/BENCH DESIGN

principal seat | permanent bench | circuit sitting

source = applicable statute/order/rules, not a universal constitutional formula

Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Union Territory and shared-court jurisdiction is arranged through constitutional and parliamentary mechanisms; bench geography depends on the applicable legal instrument.

Technical definition: Articles 230 and 231 regulate extension, exclusion and common High Courts, while Article 241 supplies the separate Union Territory court route.

ANSWER-GRABBING LINE

Territorial access is constitutionally enabled but institutionally designed through specific laws and orders.

MUST-WRITE KEYWORDS

- Article 230
- Article 231
- Article 241
- common High Court
- permanent bench
- circuit bench

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: Shared courts and regional benches can improve access without multiplying constitutional institutions mechanically.

Named evidence: Articles 230, 231 and 241 and applicable State-reorganisation or High Court statutes.

Analysis: A permanent bench reduces recurring travel, while a circuit sitting periodically takes the court to another location; each may answer geographic exclusion differently.

Qualification: Neither Article 231 nor judicial desire alone automatically creates a bench; the competent statutory and executive process controls.

EVIDENCE

- [FACT] Parliament may extend or exclude a State High Court's jurisdiction in relation to a Union Territory under Article 230.
- [FACT] A common High Court may serve multiple States and Union Territories under Article 231.
- [FACT] Seat and bench arrangements remain court- and statute-specific and should never be universalised.

PRELIMS TRAP

Common High Court, permanent bench and circuit bench are three different institutional ideas.

MAINS USE

Evaluate benches through distance, caseload, language, costs, administrative unity and legal authority.

MINI RECAP

230 adjusts UT reach; 231 shares a court; bench form depends on its legal source.

SESSION 21 - ARTICLES 233-237: SUBORDINATE-JUDICIARY CONSTITUTIONAL ARCHITECTURE

VISUAL FIRST - CONCEPT GATEWAY

ARTICLE 233 district judges: Governor + High Court consultation
ARTICLE 233A validation of specified pre-amendment appointments/judgments
ARTICLE 234 other judicial service: Governor rules + SPSC + High Court
ARTICLE 235 High Court control
ARTICLE 236 definitions
ARTICLE 237 application to classes of magistrates

Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The subordinate judiciary is not left to ordinary executive service administration; Articles 233-237 constitutionalise recruitment and High Court control.

Technical definition: Chapter VI distributes appointment, recruitment, posting, promotion, leave and disciplinary authority to preserve judicial independence within a State-based service structure.

ANSWER-GRABBING LINE

The Constitution protects trial-court independence because constitutional government is experienced first through ordinary courts.

MUST-WRITE KEYWORDS

- Articles 233-237
- judicial service
- consultation
- control
- separation

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: Institutional independence begins below the High Court, where citizens and the State most often meet.

Named evidence: Articles 233-237 read with Article 50.

Analysis: High Court participation prevents the executive, often a litigant or prosecutor, from controlling the careers of judges who decide its cases.

Qualification: States retain recruitment rules, cadres, nomenclature, infrastructure and finance within constitutional and judicial constraints.

EVIDENCE

- [FACT] Articles 233 and 234 create separate routes for district judges and other judicial-service posts.
- [FACT] Article 235 vests career control in the High Court.
- [FACT] Articles 236 and 237 define the service and permit controlled extension to magistrates.

PRELIMS TRAP

Do not describe subordinate courts as constitutionally invisible merely because their detailed hierarchy is State-specific.

MAINS USE

Use the 233-235 triangle as the core of any district-judiciary independence answer.

MINI RECAP

Appointments shared; service control judicial; implementation State-specific.

SESSION 22 - ARTICLE 233 DISTRICT JUDGES AND DIRECT RECRUITMENT

VISUAL FIRST - CONCEPT GATEWAY

DISTRICT JUDGE APPOINTMENT

Governor

- + consultation with High Court
- |
- +-- promotion from judicial service under service rules
- +-- Article 233(2) direct route:
 - not already in Union/State service
 - at least 7 years advocate/pleader
 - recommended by High Court

2025 Rejanish: qualifying prior advocacy of serving judicial officers recognised prospectively

Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: District judges are appointed, posted and promoted by the Governor in consultation with the High Court; direct Bar recruitment has a specific Article 233(2) gateway.

Technical definition: Article 233(1) protects High Court consultation, while clause (2) states the constitutional minimum for persons not already in Union or State service.

ANSWER-GRABBING LINE

Article 233 shares formal appointment but denies the executive unilateral control over the district bench.

MUST-WRITE KEYWORDS

- Article 233
- Governor
- High Court consultation
- seven years
- recommendation

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: High Court recommendation connects recruitment to professional suitability and judicial independence.

Named evidence: Article 233 and Rejanish K.V. v. K. Deepa, 2025 INSC 1208.

Analysis: The provision preserves both promotion and direct-entry pathways while ensuring that executive appointment is conditioned by the constitutional court's institutional judgment.

Qualification: Eligibility after Rejanish remains subject to the judgment's prospective operation and valid recruitment rules; it is not a licence to ignore advertisements or service conditions.

EVIDENCE

- [FACT] Rejanish prospectively overruled Dheeraj Mor's categorical exclusion and recognised qualifying prior advocacy experience of serving judicial officers.
- [FACT] The constitutional seven-year rule is a floor for the direct route, not a complete recruitment code.
- [FACT] The High Court's recommendation is expressly required by Article 233(2).

PRELIMS TRAP

Do not say the High Court itself formally appoints district judges; the Governor appoints in constitutional consultation.

MAINS USE

Use Rejanish as a current example of textual interpretation reshaping judicial-service mobility.

MINI RECAP

Governor appoints; High Court consults/recommends; direct route has seven-year constitutional conditions.

SESSION 23 - ARTICLE 234 RECRUITMENT BELOW DISTRICT JUDGE

VISUAL FIRST - CONCEPT GATEWAY

LOWER JUDICIAL SERVICE RECRUITMENT

Governor makes rules

|

+-- consult State Public Service Commission

+-- consult High Court

|

competitive selection + training + probation under valid State rules

AIJA 2025 -> prospective 3-year Bar practice for Civil Judge (Junior Division)

Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Recruitment of judicial-service members other than district judges follows State rules made by the Governor after consulting both the State Public Service Commission and High Court.

Technical definition: Article 234 constitutionalises dual consultation; current recruitment is further shaped by State rules and binding Supreme Court directions.

ANSWER-GRABBING LINE

Entry-level judicial recruitment is a shared constitutional process, not an ordinary departmental hiring exercise.

MUST-WRITE KEYWORDS

- Article 234
- Governor rules
- State PSC
- High Court
- Civil Judge

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: Dual consultation combines public recruitment capacity with judicial assessment of adjudicative suitability.

Named evidence: Article 234 and All India Judges Association v. Union of India, 2025 INSC 735.

Analysis: A uniform minimum practice period may improve courtroom readiness, while training and inclusive recruitment remain necessary for a representative and competent bench.

Qualification: The 2025 three-year Bar-practice direction operates prospectively from future recruitment cycles and does not rewrite Article 234 into an all-India service.

EVIDENCE

- [FACT] The 20 May 2025 All India Judges Association ruling restored a prospective three-year practice requirement for Civil Judge (Junior Division).
- [FACT] The judgment also addressed promotion channels and judicial-service professionalisation.
- [FACT] State rules continue to govern details consistent with constitutional consultation and binding directions.

PRELIMS TRAP

Article 234 does not make the State Public Service Commission the sole recruiting authority.

MAINS USE

Balance practical experience, training quality, diversity, recruitment speed and constitutional consultation.

MINI RECAP

Governor rules; SPSC plus High Court consultation; current practice condition is prospective.

SESSION 24 - ARTICLE 235 HIGH COURT CONTROL AND RANGA MUHAMMAD

VISUAL FIRST - CONCEPT GATEWAY

ARTICLE 235 CONTROL

High Court

- +-- posting
- +-- promotion
- +-- leave
- +-- disciplinary control
- +-- district courts + courts subordinate

Governor/state may issue formal orders where law requires
but cannot displace the High Court's controlling judgment

Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 235 vests control over district courts and subordinate courts in the High Court, including major career and disciplinary matters.

Technical definition: Control extends beyond inspection to posting, promotion, leave and disciplinary jurisdiction, subject to statutory appeal rights and formal constitutional acts.

ANSWER-GRABBING LINE

Article 235 turns judicial independence from a promise at appointment into protection throughout a judge's career.

MUST-WRITE KEYWORDS

- Article 235
- posting
- promotion
- discipline
- High Court control

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: Career control must lie with the judiciary because executive career leverage can distort adjudication.

Named evidence: State of Assam v. Ranga Muhammad (1967) and State of West Bengal v. Nripendra Nath Bagchi (1966).

Analysis: Ranga Muhammad located transfer of serving district judges within Article 235 control, while Bagchi treated disciplinary control as integral to the High Court's authority.

Qualification: Control must still follow service rules, natural justice and any constitutionally valid formal role reserved to the Governor.

EVIDENCE

- [FACT] Article 233's 'posting' at initial appointment is not a general executive transfer power over serving district judges.
- [FACT] High Court control includes disciplinary proceedings and recommendations, not merely annual inspection.

- [FACT] Article 235 does not transfer State budget-making or every ministerial service function to the High Court.

PRELIMS TRAP

Do not read Article 233 appointment language as cancelling Article 235 control after entry into service.

MAINS USE

Use Ranga Muhammad to demonstrate the appointment-versus-career-control distinction.

MINI RECAP

Executive form may remain; decisive career control belongs to the High Court.

SESSION 25 - ARTICLES 236-237, ARTICLE 50 AND THE MEANING OF JUDICIAL SERVICE

VISUAL FIRST - CONCEPT GATEWAY

ARTICLE 236 DEFINES

district judge = inclusive list of named district/sessions judicial offices

judicial service = service exclusively intended for district-judge and lower civil judicial posts

ARTICLE 237

Governor may apply Chapter VI to classes of magistrates with exceptions/modifications

ARTICLE 50

State shall separate judiciary from executive in public services

Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Constitution defines judicial service narrowly and permits a controlled transition of magistrates into the Chapter VI framework.

Technical definition: Article 236 contains inclusive office definitions; Article 237 authorises gubernatorial notification applying the Chapter to classes of magistrates; Article 50 supplies the separation directive.

ANSWER-GRABBING LINE

Judicial independence depends on who belongs to the judicial service and who controls that service.

MUST-WRITE KEYWORDS

- Article 236
- district judge definition
- judicial service
- Article 237
- Article 50

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: Definitions and transition powers prevent executive-magisterial structures from silently entering the independent judicial cadre.

Named evidence: Articles 50, 236 and 237 and Chandra Mohan v. State of Uttar Pradesh (1966).

Analysis: Chandra Mohan read Articles 233-234 in light of separation, rejecting a route that would allow executive officers to become district judges outside the constitutional scheme.

Qualification: Article 50 is a Directive Principle, but it illuminates the binding institutional design of Articles 233-237.

EVIDENCE

- [FACT] Article 236's district-judge definition includes specified civil and sessions offices.
- [FACT] Judicial service is confined to persons intended to fill district-judge and lower civil judicial posts.

- [FACT] Article 237 operates by gubernatorial public notification and may include stated exceptions or modifications.

PRELIMS TRAP

Do not treat every magistrate or legal officer as constitutionally part of the judicial service.

MAINS USE

Connect Article 50's norm to the enforceable appointment-and-control architecture.

MINI RECAP

Define the cadre, control transition, separate adjudication from executive service.

SESSION 26 - ARTICLE 233A AND THE TWENTIETH AMENDMENT VALIDATION

VISUAL FIRST - CONCEPT GATEWAY

CHANDRA MOHAN INVALIDITY PROBLEM
 specified past district-judge appointments/postings/promotions/transfers questioned
 |
 CONSTITUTION (20TH AMENDMENT) ACT, 1966
 |
 ARTICLE 233A validates specified pre-commencement appointments and judgments
 despite defects under Articles 233 or 235

Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 233A is a historical validation clause designed to protect specified past district-judge appointments and judicial acts from collapse.

Technical definition: Inserted by the Constitution (Twentieth Amendment) Act, 1966, it validates covered appointments, postings, promotions, transfers and judgments made before its commencement notwithstanding specified constitutional defects.

ANSWER-GRABBING LINE

Article 233A cured a past institutional rupture; it is not a general licence to bypass Articles 233 and 235.

MUST-WRITE KEYWORDS

- Article 233A
- Twentieth Amendment 1966
- validation
- past appointments
- judgments

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: Validation preserved legal continuity after constitutional defects threatened completed appointments and adjudication.

Named evidence: Constitution (Twentieth Amendment) Act, 1966 and Article 233A, following the Chandra Mohan context.

Analysis: Without targeted validation, large numbers of judgments and judicial acts could have been destabilised by defects in the appointing route.

Qualification: The provision is historically bounded and cannot validate future disregard of the constitutional appointment structure.

EVIDENCE

- [FACT] Article 233A addresses specified appointments and acts before the amendment's commencement.

- [FACT] Its non obstante language responds to defects under Articles 233 or 235.
- [FACT] Current appointments must still comply with the ordinary constitutional provisions.

PRELIMS TRAP

Do not describe Article 233A as the normal present-day appointment power.

MAINS USE

Use it as an example of constitutional validation balancing legality with continuity.

MINI RECAP

Historical cure, limited validation, no prospective bypass.

SESSION 27 - DISTRICT-COURT HIERARCHY AND STATE-SPECIFIC PRACTICE

VISUAL FIRST - CONCEPT GATEWAY

```

HIGH COURT
|
DISTRICT & SESSIONS JUDGE (same officer, civil/criminal capacities)
+-- civil appellate/original work under State/procedural law
+-- sessions criminal jurisdiction
|
Civil Judge (Senior Division) | Chief Judicial Magistrate
|
Civil Judge (Junior Division) | Judicial Magistrate
  
```

Names, pecuniary limits and allocation vary by State law/rules.

Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Below the High Court, civil and criminal hierarchies commonly run through district-level and junior courts, but nomenclature and jurisdiction vary across States.

Technical definition: The Constitution protects recruitment and control; procedural codes, State civil-courts laws and notifications distribute original, appellate, territorial and pecuniary jurisdiction.

ANSWER-GRABBING LINE

The Constitution standardises independence, not every courtroom label or pecuniary limit.

MUST-WRITE KEYWORDS

- District Judge
- Sessions Judge
- civil hierarchy
- criminal hierarchy
- State-specific

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: A common constitutional control framework can coexist with locally adapted court organisation.

Named evidence: Articles 233-236, State civil-courts statutes and criminal procedure legislation.

Analysis: Local allocation responds to population, caseload and geography, while High Court control preserves professional standards and appellate coherence.

Qualification: Textbook three-tier diagrams are broad models, not universal statutory maps for every State.

EVIDENCE

- [FACT] The same district-level officer functions as District Judge on the civil side and Sessions Judge on the criminal side.

- [FACT] A death sentence imposed by a Sessions Court requires High Court confirmation.
- [FACT] Metropolitan, small-causes and specialised court nomenclature depends on governing law.

PRELIMS TRAP

Do not universalise one State's title, pecuniary limit or appellate route.

MAINS USE

State the broad hierarchy, then expressly reserve statutory and State variation.

MINI RECAP

Common constitutional independence; variable statutory organisation.

SESSION 28 - ACCESS TO JUSTICE: ARTICLE 39A, NALSA AND LOK ADALATS

VISUAL FIRST - CONCEPT GATEWAY

ARTICLE 39A equal justice + free legal aid
 |
 Legal Services Authorities Act, 1987
 |
 NALSA -> SLASA -> DLASA -> Taluk committees
 |
 ordinary Lok Adalat: compromise/settlement
 Permanent Lok Adalat: public-utility pre-litigation conciliation,
 then bounded adjudication if settlement fails

Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Legal services institutions reduce financial and procedural barriers, while Lok Adalats settle appropriate disputes through a statutory access-to-justice framework.

Technical definition: The Legal Services Authorities Act, 1987 operationalises Article 39A through NALSA and State, District and Taluk bodies and creates ordinary and Permanent Lok Adalat mechanisms.

ANSWER-GRABBING LINE

Access to courts is incomplete when poverty, distance or procedure makes a legal remedy unusable.

MUST-WRITE KEYWORDS

- Article 39A
- NALSA
- legal aid
- Lok Adalat
- Permanent Lok Adalat

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: Legal aid and consensual settlement widen effective justice without altering the constitutional hierarchy.

Named evidence: Article 39A and the Legal Services Authorities Act, 1987.

Analysis: Assistance and low-cost settlement can resolve suitable disputes early, conserve judicial time and reduce unequal bargaining barriers.

Qualification: Ordinary Lok Adalats cannot decide a contested dispute on merits; non-compoundable criminal offences remain outside their settlement power.

EVIDENCE

- [FACT] An agreed Lok Adalat award is final, binding and deemed a civil-court decree under the statute.

- [FACT] Permanent Lok Adalats have a distinct pre-litigation public-utility-services jurisdiction and bounded adjudicatory role.
- [FACT] Eligibility and income ceilings must be stated from the competent current rules, not as one timeless nationwide figure.

PRELIMS TRAP

A Permanent Lok Adalat is not merely an ordinary Lok Adalat that sits permanently.

MAINS USE

Use legal services as an access reform while preserving consent, criminal-law and adjudicatory boundaries.

MINI RECAP

Aid enables entry; ordinary Lok Adalat settles; PLA has a distinct statutory public-utility route.

SESSION 29 - GRAM NYAYALAYAS, FAMILY COURTS, COMMERCIAL COURTS AND SPECIAL COURTS

VISUAL FIRST - CONCEPT GATEWAY

STATUTORY SPECIALISATION - SOURCE CONTROLS POWER

Gram Nyayalayas Act, 2008 -> notified grassroots courts; scheduled civil/criminal jurisdiction

Family Courts Act, 1984 -> specified matrimonial/family matters; conciliation emphasis

Commercial Courts Act, 2015 -> commercial disputes of specified value;

HC Commercial Division only where original civil jurisdiction exists

Special courts/tribunals -> only the creating statute's subject, procedure and appeal route

Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Specialised courts exist because statutes assign a defined subject, procedure and appellate route; their label does not create unlimited jurisdiction.

Technical definition: Gram Nyayalayas, Family Courts and Commercial Courts operate under separate central statutes and State notifications or establishment decisions.

ANSWER-GRABBING LINE

Specialisation improves access only when statutory boundaries, staffing and appellate supervision remain clear.

MUST-WRITE KEYWORDS

- Gram Nyayalayas Act 2008
- Family Courts Act 1984
- Commercial Courts Act 2015
- specified value
- statutory boundary

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: Targeted procedure can reduce delay and improve expertise when it supplements rather than fragments ordinary justice.

Named evidence: Gram Nyayalayas Act, 2008; Family Courts Act, 1984; Commercial Courts Act, 2015.

Analysis: Mobile sittings, conciliation or commercial case management respond to different barriers and therefore cannot be treated as interchangeable reform models.

Qualification: Establishment, notification, territorial reach, pecuniary threshold and appellate route depend on the statute and current State implementation.

EVIDENCE

- [FACT] Gram Nyayalayas exercise only civil and criminal jurisdiction assigned by the Act and its Schedules; they are not constitutionally mandatory village courts everywhere.

- [FACT] Family Courts receive the Section 7 family and matrimonial jurisdiction where established and emphasise conciliation.
- [FACT] Commercial Divisions in High Courts depend on the court possessing ordinary original civil jurisdiction; district-level Commercial Courts follow the statutory specified-value scheme.

PRELIMS TRAP

Never infer jurisdiction from the institution's name: read the creating Act, notification and appeal provision.

MAINS USE

Compare purpose, legal source, entry route, decision method and appellate supervision.

MINI RECAP

Three statutes, three bounded designs; specialisation is not constitutional uniformity.

SESSION 30 - ALL INDIA JUDICIAL SERVICE UNDER ARTICLE 312

VISUAL FIRST - CONCEPT GATEWAY

ARTICLE 312 ROUTE

Rajya Sabha resolution: $\geq$ two-thirds present and voting, national-interest finding

Parliament may create service by law

AIJS may include district-judge level

ARTICLE 312(3): cannot include posts below district judge

STATUS 7 Sep 2026: proposal; no AIJS created

Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Constitution enables but does not itself establish an All India Judicial Service.

Technical definition: Article 312 requires a Rajya Sabha national-interest resolution and parliamentary law; Article 312(3) excludes posts inferior to district judge.

ANSWER-GRABBING LINE

AIJS is a constitutional possibility whose design must preserve High Court control and State legal diversity.

MUST-WRITE KEYWORDS

- Article 312
- Rajya Sabha
- two-thirds present and voting
- district judge
- no consensus

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: A national service could regularise recruitment and broaden the talent pool at district-judge level.

Named evidence: Article 312, the Forty-second Amendment's judicial-service enabling change and official Department of Justice parliamentary replies.

Analysis: Common standards and predictable calendars may address vacancies, but language, local law, reservation and Articles 233-235 create legitimate federal concerns.

Qualification: AIJS cannot constitutionally absorb posts below district judge, and no service exists as of 7 September 2026.

EVIDENCE

- [FACT] Official parliamentary replies record continuing divergence among States and High Courts.

- [FACT] Any statute must preserve High Court consultation and control consistent with Articles 233 and 235.
- [FACT] Central recruitment alone cannot repair infrastructure, training, retention or case management.

PRELIMS TRAP

Do not write that Article 312 automatically created AIJS or that it can include Civil Judge posts.

MAINS USE

Give a conditional design verdict: national standards with language testing, State allocation and High Court control.

MINI RECAP

Constitutional route exists; district-judge floor applies; consensus and design remain unresolved.

SESSION 31 - RECRUITMENT CALENDARS AND THE ALL INDIA JUDGES ASSOCIATION SERIES

VISUAL FIRST - CONCEPT GATEWAY

JUDICIAL SERVICE REFORM ARC

1992/1993 AIJA -> national attention to service conditions

2002 AIJA (3) -> pay, cadres, promotion and administration directions

Malik Mazhar Sultan (2006 onward) -> time-bound vacancy/recruitment calendar

2025 AIJA -> prospective 3-year Bar practice + revised promotion channels

Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Supreme Court has used continuing proceedings to improve judicial-service conditions and recruitment regularity.

Technical definition: The All India Judges Association series and Malik Mazhar Sultan directions operate alongside, not instead of, Articles 233-235 and State recruitment rules.

ANSWER-GRABBING LINE

Vacancy reduction requires a calendar and institutional responsibility, not occasional recruitment drives.

MUST-WRITE KEYWORDS

- All India Judges Association
- Malik Mazhar Sultan
- recruitment calendar
- promotion
- service conditions

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: Continuing judicial directions can coordinate fragmented recruitment where recurring vacancies undermine access.

Named evidence: All India Judges Association decisions (1992, 1993, 2002 and 2025) and Malik Mazhar Sultan v. U.P. Public Service Commission (2006 onward).

Analysis: Annual vacancy assessment, examination, selection and appointment milestones make delay visible and assign responsibility across High Courts, commissions and governments.

Qualification: A judicial calendar cannot eliminate State-specific litigation, reservation issues, rule amendments or infrastructure bottlenecks.

EVIDENCE

- [FACT] Malik Mazhar Sultan prescribed a recurring recruitment schedule for the subordinate judiciary.
- [FACT] The AIJA series addressed pay scales, cadre conditions, promotion and professionalisation.
- [FACT] The 2025 ruling changes future entry and promotion pathways prospectively.

PRELIMS TRAP

Do not present Supreme Court directions as permanently replacing valid State rules; they control and coordinate within the constitutional framework.

MAINS USE

Use the cases to move a pendency answer from diagnosis to accountable recruitment design.

MINI RECAP

Conditions, calendars and career paths form one capacity-reform chain.

SESSION 32 - E-COURTS PHASE III, NJDG AND DIGITAL ACCESS

VISUAL FIRST - CONCEPT GATEWAY

E-COURTS PHASE III (2023-2027; Rs 7,210 crore)
records digitisation -> e-filing/e-payments -> paperless workflows
-> e-Sewa Kendras -> video/hybrid access -> data-based management
|
NJDG dashboards expose pendency/disposal patterns
|
LIMITS: connectivity | accessibility | privacy | cyber-security | digital assistance
Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Digital courts are an infrastructure and process reform intended to make filing, information, payments and case management more accessible and efficient.

Technical definition: e-Courts Phase III is a Central Sector Scheme implemented by the Department of Justice with the Supreme Court e-Committee and High Courts; NJDG is a data platform, not an adjudicatory body.

ANSWER-GRABBING LINE

Technology reduces friction only when digital access is an additional door rather than the only door.

MUST-WRITE KEYWORDS

- e-Courts Phase III
- NJDG
- e-filing
- e-Sewa Kendra
- digital divide

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: Interoperable digital infrastructure can reduce transaction costs and improve administrative visibility.

Named evidence: Union Cabinet approval of 13 September 2023 and the Department of Justice e-Courts Phase III programme.

Analysis: Digitised records and workflow data can improve listing, service and case management, while assisted access can reduce distance for litigants.

Qualification: Technology cannot substitute for judges, staff, legal aid, reasoned hearings, language access, privacy or reliable physical facilities.

EVIDENCE

- [FACT] Phase III runs for four years from 2023 with an official outlay of Rs 7,210 crore.
- [FACT] The programme includes legacy-record digitisation, universalised e-filing/e-payments, paperless courts and e-Sewa Kendras.
- [FACT] NJDG data should be date-stamped and interpreted by case type, age and court rather than converted into one undifferentiated pendency claim.

PRELIMS TRAP

Do not treat online availability as proof of substantive or universal access.

MAINS USE

Use a technology-plus-institutions framework: process, people, accessibility, security and evaluation.

MINI RECAP

Digital by design, assisted by default, never digital-only.

SESSION 33 - PENDENCY, GOVERNMENT LITIGATION AND CASE MANAGEMENT

VISUAL FIRST - CONCEPT GATEWAY

PENDENCY STOCK

new filings + old arrears

CAUSES: vacancies | adjournments | service delays | weak investigation
government litigation | process complexity | uneven infrastructure

RESPONSES: fill posts | case triage | mediation | costs | scheduling
digital process | prosecution reform | reasoned adjournment control

Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Pendency is the accumulated stock of unresolved cases; it differs from delay in a particular case and from disposal performance over a period.

Technical definition: A credible reform diagnosis separates inflow, disposal, age profile, case category, judge strength, staff capacity and procedural bottlenecks.

ANSWER-GRABBING LINE

Pendency is a systems problem produced by institutions on both sides of the Bench.

MUST-WRITE KEYWORDS

- pendency
- delay
- case management
- government litigation
- vacancy

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: No single intervention can solve pendency because the queue is generated by filing behaviour, procedure, capacity and compliance together.

Named evidence: Department of Justice strength data, NJDG and judicial case-management directions.

Analysis: Filling vacancies helps only if summons, records, prosecution, pleadings, adjournments and judgment support also improve.

Qualification: High disposal counts may conceal old-case accumulation or reduced hearing quality; targets must remain rights-sensitive.

EVIDENCE

- [FACT] Government is a major repeat litigant, so departmental appeal discipline can reduce avoidable inflow.
- [FACT] Differentiated case tracks and early issue identification improve scheduling.
- [FACT] Alternative dispute resolution is suitable only where consent, rights and statutory subject matter permit.

PRELIMS TRAP

Do not use one national pendency number without date, court level and source.

MAINS USE

Write reforms across supply, procedure, litigant incentives and technology, each with a safeguard.

MINI RECAP

Measure the queue correctly; fix inflow and throughput; protect adjudicative quality.

SESSION 34 - INTERIM ORDERS AND HIGH COURT BAR ASSOCIATION ALLAHABAD (2024)

VISUAL FIRST - CONCEPT GATEWAY

INTERIM STAY

granted for reasoned temporary protection

passage of six months alone? -> NO automatic vacation

continues until limited by its terms or modified/vacated by judicial order

vacation applications -> hear promptly; record reasons; manage main case

Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: An interim order does not automatically expire merely because a fixed period has passed unless the order itself or governing law so provides.

Technical definition: High Court Bar Association, Allahabad v. State of Uttar Pradesh, 2024 INSC 150, overruled the automatic-vacation direction in Asian Resurfacing while stressing reasoned and expeditious case management.

ANSWER-GRABBING LINE

Judicial delay is not cured by mechanically extinguishing protection without hearing the parties.

MUST-WRITE KEYWORDS

- interim order
- automatic vacation
- reasoned order
- Asian Resurfacing
- 2024 INSC 150

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: Continuation or vacation of interim relief is an adjudicative decision, not a calendar event.

Named evidence: High Court Bar Association, Allahabad v. State of Uttar Pradesh (2024).

Analysis: Automatic lapse could expose a party to irreversible harm without judicial application of mind, while unmanaged stays can also stall trials.

Qualification: The ruling rejects universal automatic vacation, not judicial power to time-limit, modify or vacate a stay after hearing and reasons.

EVIDENCE

- [FACT] The Constitution Bench rejected the six-month automatic-vacation rule from Asian Resurfacing.
- [FACT] Courts should prioritise applications to vacate stays and the underlying proceedings.
- [FACT] Article 226(3)'s separate two-week mechanism for qualifying ex parte interim-order vacation applications remains textually relevant.

PRELIMS TRAP

Do not confuse the 2024 general interim-order ruling with Article 226(3)'s specific constitutional consequence.

MAINS USE

Use the case to balance due process, docket control and reasoned judicial discretion.

MINI RECAP

No time-only lapse; reasoned judicial control; prompt hearing still required.

SESSION 35 - ARTICLE 226(3) EX PARTE INTERIM-ORDER SAFEGUARD

VISUAL FIRST - CONCEPT GATEWAY

EX PARTE INTERIM ORDER under Article 226
affected party receives petition/documents
|
applies to vacate + furnishes copy to beneficiary/counsel
|
High Court must dispose within two weeks
(or next open day if closed on last day)
|
failure -> interim order stands vacated

Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 226(3) protects a party restrained without an opportunity of being heard by requiring prompt disposal of a properly served vacation application.

Technical definition: The constitutional clock applies only when the clause's notice, document and application conditions are satisfied.

ANSWER-GRABBING LINE

Article 226 combines strong interim protection with a textually exact anti-delay safeguard for the unheard party.

MUST-WRITE KEYWORDS

- Article 226(3)
- ex parte
- vacation application
- two weeks
- stands vacated

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: The clause converts natural-justice concern into a self-executing timetable.

Named evidence: Article 226(3), substituted by section 30 of the Constitution (Forty-fourth Amendment) Act, 1978 with effect from 1 August 1979.

Analysis: A beneficiary cannot indefinitely retain an ex parte restraint while the affected party's request remains unheard.

Qualification: The consequence depends on compliance with the clause; it should not be loosely applied to every interim order.

EVIDENCE

- [FACT] The applicant must furnish a copy of the vacation application to the beneficiary or counsel.
- [FACT] The court receives two weeks from receipt/application as constitutionally specified.
- [FACT] If the court is closed on the last day, disposal may occur on the next open day.

PRELIMS TRAP

The 2024 rejection of a universal six-month rule did not repeal Article 226(3).

MAINS USE

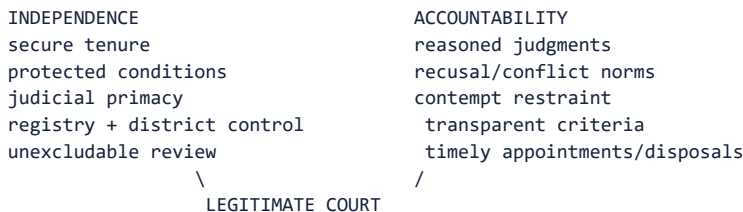
Use the clause as an example of text-specific procedural fairness within broad writ jurisdiction.

MINI RECAP

Qualifying ex parte order; served application; two-week disposal; textual vacation consequence.

SESSION 36 - JUDICIAL INDEPENDENCE, ACCOUNTABILITY AND INSTITUTIONAL LEGITIMACY

VISUAL FIRST - CONCEPT GATEWAY



Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Judicial independence protects impartial decision-making; accountability supplies reasons, ethics, transparency and institutional responsibility.

Technical definition: The constitutional safeguards operate with statutory procedure, in-house mechanisms, open-court norms and review rather than political command.

ANSWER-GRABBING LINE

Independence without accountability risks opacity; accountability without independence risks capture.

MUST-WRITE KEYWORDS

- **decisional independence**
- **institutional independence**
- **reasoned judgment**
- **recusal**
- **transparency**

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: Legitimacy depends on insulating outcomes from power while making judicial institutions explain and improve their processes.

Named evidence: Articles 215, 217-222, 229 and 235, read with the Judges Cases and open-justice principles.

Analysis: Security protects courage, while published reasons, conflict disclosure and predictable appointments protect public trust.

Qualification: Accountability mechanisms must not become executive control or social-media adjudication.

EVIDENCE

- [FACT] Collegium reform concerns criteria, timelines, diversity and reasoned disclosure consistent with privacy.
- [FACT] Removal addresses the gravest misconduct but is too exceptional to serve as everyday administration.
- [FACT] Capacity and accessibility are legitimacy questions because delayed constitutional remedies lose practical value.

PRELIMS TRAP

Do not present independence and accountability as mutually exclusive constitutional values.

MAINS USE

Conclude with 'accountable independence': protected adjudication plus transparent administration.

MINI RECAP

Insulate decisions, explain institutions, preserve lawful review.

SESSION 37 - CONSTITUTIONAL AND STATUTORY SOURCE FIREWALL

VISUAL FIRST - CONCEPT GATEWAY

SOURCE LADDER

- 1 Constitution -> power/structure/guarantee
- 2 constitutional amendment -> exact changed text/effect
- 3 statute -> subject, procedure, jurisdiction, appeal
- 4 binding judgment -> interpretation/holding
- 5 rules/notifications -> implementation detail
- 6 State practice -> variable, dated, never universal
- 7 programme/dashboard -> administrative evidence, not law

Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A precise polity answer identifies the legal source of each proposition rather than merging text, cases, statutes and practice.

Technical definition: Source separation is essential where High Court jurisdiction and subordinate-court organisation combine entrenched powers with alterable procedural law.

ANSWER-GRABBING LINE

The strongest High Court answer is not the one with the most provisions, but the one that states what each provision legally does.

MUST-WRITE KEYWORDS

- constitutional text
- amendment
- statute
- judgment
- rules
- practice

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: Source labelling prevents temporary practice from being mistaken for constitutional command.

Named evidence: Articles 214-237, the relevant court statutes and controlling Supreme Court authorities.

Analysis: An examiner can see whether a conclusion is entrenched, legislatively alterable, judicially interpreted or merely administrative.

Qualification: A useful textbook summary may organise doctrine, but it cannot displace exact constitutional or statutory language.

EVIDENCE

- [FACT] Original civil jurisdiction and benches are source-specific.
- [FACT] The collegium is case-created within Article 217's consultation text.
- [FACT] e-Courts and vacancy dashboards describe administration, not constitutional power.

PRELIMS TRAP

Do not cite a programme, practice or textbook as though it were the constitutional source.

MAINS USE

Use source labels in margins: C, Amd, Act, Case, Rule, Practice, Current.

MINI RECAP

Identify source, state rule, apply mechanism, preserve limit.

SESSION 38 - ARTICLES 214-237 RAPID CONSTITUTIONAL MAP

VISUAL FIRST - CONCEPT GATEWAY

214 HC for each State | 215 record/contempt | 216 composition
217 appointment/conditions | 218 removal bridge | 219 oath | 220 practice restriction
221 salary/conditions | 222 transfer | 223 acting CJ | 224 additional/acting judges
224A retired judges | 225 existing jurisdiction | 226 writs | 227 superintendence
228 constitutional withdrawal | 229 staff/expenses | 230 UT reach | 231 common HC
232 repealed | 233 district judges | 233A validation | 234 lower service
235 HC control | 236 definitions | 237 magistrate application

Caption: The diagram fixes this session's controlling legal relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The constitutional sequence moves from court creation and personnel to jurisdiction, administration, territory and the subordinate judiciary.

Technical definition: Articles 214-237 must be learned as a functional chain rather than isolated numbers.

ANSWER-GRABBING LINE

The High Court chapter protects both adjudication and the institutions needed to make adjudication independent.

MUST-WRITE KEYWORDS

- 214-237
- organisation
- judges
- jurisdiction
- administration
- subordinate courts

HIGH-COURT-SPECIFIC ANSWER UNIT

Claim: The sequence reveals a coherent design: create the court, secure its judges, protect its powers and place district justice under judicial control.

Named evidence: Part VI, Chapters V and VI of the Constitution.

Analysis: Reading the provisions as a chain improves recall and prevents category errors between appointment, transfer, supervision and service control.

Qualification: Articles alone do not determine every procedural route; statutes, judgments and State rules remain necessary.

EVIDENCE

- [FACT] Articles 214-224A principally concern organisation and judges.
- [FACT] Articles 225-231 principally concern jurisdiction, administration and territory.
- [FACT] Articles 233-237 principally concern the subordinate judiciary; Article 232 is repealed.

PRELIMS TRAP

Do not skip Article 233A or treat repealed Article 232 as operative.

MAINS USE

Use this map for introductions, body sequencing and last-minute revision.

MINI RECAP

Organisation -> independence -> jurisdiction -> administration -> territorial design -> district judiciary.

Exactly 32 original MCQs appear before every PYQ. The key is ABCD repeated eight times. Each of the 128 option explanations and all 32 Examiner traps are question-specific.

BASIC MCQS / REMEDIATION

Exactly 32 original MCQs - ABCD x 8

MCQ 1. Article 214 and common courts

Which statement is constitutionally correct?

A. Article 214's State-wise default operates with Article 231's power to establish a common High Court. B. Every Union Territory must have an independent High Court. C. Article 232 currently creates circuit benches. D. A common High Court merges the participating States' judicial services.

Answer: A.

Option explanations:

- **A:** Correct. This option states the operative rule: Articles 214 and 231 must be read together; Article 232 is repealed and shared jurisdiction does not merge State services. Therefore 'Article 214's State-wise default operates with Article 231's power to establish a common High Court.' states the operative position.
- **B:** Incorrect. This formulation overstates, understates or misattributes the rule: Articles 214 and 231 must be read together; Article 232 is repealed and shared jurisdiction does not merge State services. Therefore 'Every Union Territory must have an independent High Court.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This choice conflicts with the controlling proposition: Articles 214 and 231 must be read together; Article 232 is repealed and shared jurisdiction does not merge State services. Therefore 'Article 232 currently creates circuit benches.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The option collapses a distinction preserved by the governing rule: Articles 214 and 231 must be read together; Article 232 is repealed and shared jurisdiction does not merge State services. Therefore 'A common High Court merges the participating States' judicial services.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 1: The numerical phrase 'for each State' is a default, not a prohibition on common High Courts.

MCQ 2. Court of record

Which provision makes every High Court a court of record with contempt power?

A. Article 216. B. Article 215. C. Article 225. D. Article 227.

Answer: B.

Option explanations:

- **A:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 215 expressly declares every High Court a court of record and includes power to punish contempt of itself. Therefore 'Article 216.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Correct. This choice matches the controlling proposition: Article 215 expressly declares every High Court a court of record and includes power to punish contempt of itself. Therefore 'Article 215.' states the operative position.
- **C:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 215 expressly declares every High Court a court of record and includes power to punish contempt of itself. Therefore 'Article 225.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The stated actor, source or consequence fails when tested against: Article 215 expressly declares every High Court a court of record and includes power to punish contempt of itself. Therefore 'Article 227.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 2: The Contempt of Courts Act regulates; it does not create the Article 215 power.

MCQ 3. Composition

Under Article 216, a High Court consists of:

A. only a Chief Justice. B. a constitutionally fixed national number of judges. C. a Chief Justice and such other judges as are appointed. D. a Chief Justice plus an elected State judicial council.

Answer: C.

Option explanations:

- **A:** Incorrect. This choice conflicts with the controlling proposition: Article 216 states Chief Justice plus other judges; it fixes no uniform strength and creates no elected judicial council. Therefore 'only a Chief Justice.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 216 states Chief Justice plus other judges; it fixes no uniform strength and creates no elected judicial council. Therefore 'a constitutionally fixed national number of judges.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Correct. This option states the operative rule: Article 216 states Chief Justice plus other judges; it fixes no uniform strength and creates no elected judicial council. Therefore 'a Chief Justice and such other judges as are appointed.' states the operative position.
- **D:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 216 states Chief Justice plus other judges; it fixes no uniform strength and creates no elected judicial council. Therefore 'a Chief Justice plus an elected State judicial council.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 3: Do not convert a dated sanctioned-strength figure into constitutional composition.

MCQ 4. Appointment text

A puisne High Court judge is appointed by the President after constitutionally specified consultation with:

A. only the Chief Justice of the High Court. B. the Chief Minister and Speaker. C. only the Chief Justice of India. D. the CJI, State Governor and Chief Justice of the High Court.

Answer: D.

Option explanations:

- **A:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 217 adds the High Court Chief Justice to the CJI and Governor consultations for a judge other than the Chief Justice. Therefore 'only the Chief Justice of the High Court.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The stated actor, source or consequence fails when tested against: Article 217 adds the High Court Chief Justice to the CJI and Governor consultations for a judge other than the Chief Justice. Therefore 'the Chief Minister and Speaker.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 217 adds the High Court Chief Justice to the CJI and Governor consultations for a judge other than the Chief Justice. Therefore 'only the Chief Justice of India.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Correct. This choice matches the controlling proposition: Article 217 adds the High Court Chief Justice to the CJI and Governor consultations for a judge other than the Chief Justice. Therefore 'the CJI, State Governor and Chief Justice of the High Court.' states the operative position.

Examiner trap 4: The collegium's numerical composition comes from case law and procedure, not Article 217's words.

MCQ 5. Qualification

Which is a valid High Court eligibility route under Article 217(2)?

A. Indian citizenship plus ten years in a judicial office in India. B. Recognition as a distinguished jurist without professional experience. C. Five years as a High Court advocate. D. Membership of a State legislature for ten years.

Answer: A.

Option explanations:

- **A:** Correct. This option states the operative rule: Article 217 requires citizenship plus ten years in judicial office or ten years as an advocate of one or more High Courts. Therefore 'Indian citizenship plus ten years in a judicial office in India.' states the operative position.
- **B:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 217 requires citizenship plus ten years in judicial office or ten years as an advocate of one or more High Courts. Therefore 'Recognition as a distinguished jurist without professional experience.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This choice conflicts with the controlling proposition: Article 217 requires citizenship plus ten years in judicial office or ten years as an advocate of one or more High Courts. Therefore 'Five years as a High Court advocate.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 217 requires citizenship plus ten years in judicial office or ten years as an advocate of one or more High Courts. Therefore 'Membership of a State legislature for ten years.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 5: The distinguished-jurist route belongs to Supreme Court eligibility, not High Court eligibility.

MCQ 6. Oath

A High Court judge ordinarily makes the constitutional oath before:

- A. the President personally. B. the Governor or a person appointed by the Governor. C. the Chief Justice of India only. D. the State Legislative Assembly.

Answer: B.

Option explanations:

- **A:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 219 assigns the oath to the Governor or the Governor's appointee under the Third Schedule form. Therefore 'the President personally.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Correct. This choice matches the controlling proposition: Article 219 assigns the oath to the Governor or the Governor's appointee under the Third Schedule form. Therefore 'the Governor or a person appointed by the Governor.' states the operative position.
- **C:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 219 assigns the oath to the Governor or the Governor's appointee under the Third Schedule form. Therefore 'the Chief Justice of India only.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The stated actor, source or consequence fails when tested against: Article 219 assigns the oath to the Governor or the Governor's appointee under the Third Schedule form. Therefore 'the State Legislative Assembly.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 6: Formal presidential appointment does not mean a presidentially administered oath.

MCQ 7. Retirement and removal

Which statement is correct?

- A. A High Court judge retires at 65 and is removable by the Governor. B. A High Court judge holds office during presidential pleasure. C. A High Court judge ordinarily retires at 62 and uses the Article 124(4)-type removal route through Article 218. D. Parliament removes a judge by ordinary majority.

Answer: C.

Option explanations:

- **A:** Incorrect. This choice conflicts with the controlling proposition: Articles 217 and 218 set retirement at sixty-two and apply the stringent Supreme Court removal framework. Therefore 'A High Court judge retires at 65 and is removable by the Governor.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The option collapses a distinction preserved by the governing rule: Articles 217 and 218 set retirement at sixty-two and apply the stringent Supreme Court removal framework. Therefore 'A High Court judge holds office during presidential pleasure.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Correct. This option states the operative rule: Articles 217 and 218 set retirement at sixty-two and apply the stringent Supreme Court removal framework. Therefore 'A High Court judge ordinarily retires at 62 and uses the Article 124(4)-type removal route through Article 218.' states the operative position.
- **D:** Incorrect. This formulation overstates, understates or misattributes the rule: Articles 217 and 218 set retirement at sixty-two and apply the stringent Supreme Court removal framework. Therefore 'Parliament removes a judge by ordinary majority.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 7: Appointment by the President does not create pleasure tenure.

MCQ 8. Post-retirement practice

Article 220 permits a former permanent High Court judge to plead or act:

A. in every subordinate court except the former district. B. before any tribunal but no court. C. only before the former High Court. D. before the Supreme Court and other High Courts, subject to the constitutional restriction.

Answer: D.

Option explanations:

- **A:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 220 restricts practice after permanent High Court judgeship while preserving the Supreme Court and other High Courts. Therefore 'in every subordinate court except the former district.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The stated actor, source or consequence fails when tested against: Article 220 restricts practice after permanent High Court judgeship while preserving the Supreme Court and other High Courts. Therefore 'before any tribunal but no court.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 220 restricts practice after permanent High Court judgeship while preserving the Supreme Court and other High Courts. Therefore 'only before the former High Court.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Correct. This choice matches the controlling proposition: Article 220 restricts practice after permanent High Court judgeship while preserving the Supreme Court and other High Courts. Therefore 'before the Supreme Court and other High Courts, subject to the constitutional restriction.' states the operative position.

Examiner trap 8: The restriction is not a total nationwide bar on legal practice.

MCQ 9. Transfer

Which statement best states Article 222?

A. The President may transfer a High Court judge after consulting the CJI; consent is not an express condition. B. The Governor transfers judges after consulting the Chief Minister. C. Transfer is possible only on the judge's written request. D. Parliament transfers judges by resolution.

Answer: A.

Option explanations:

- **A:** Correct. This option states the operative rule: Article 222 gives the President formal transfer power after CJI consultation; judicial doctrine adds institutional safeguards. Therefore 'The President may transfer a High Court judge after consulting the CJI; consent is not an express condition.' states the operative position.
- **B:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 222 gives the President formal transfer power after CJI consultation; judicial doctrine adds institutional safeguards. Therefore 'The Governor transfers judges after consulting the Chief Minister.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This choice conflicts with the controlling proposition: Article 222 gives the President formal transfer power after CJI consultation; judicial doctrine adds institutional safeguards. Therefore 'Transfer is possible only on the judge's written request.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 222 gives the President formal transfer power after CJI consultation; judicial doctrine adds institutional safeguards. Therefore 'Parliament transfers judges by resolution.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 9: No-consent does not mean no review: mala fide or punitive use remains impermissible.

MCQ 10. Acting Chief Justice

Which Article addresses an Acting Chief Justice of a High Court?

A. Article 224A. B. Article 223. C. Article 229. D. Article 231.

Answer: B.

Option explanations:

- **A:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 223 covers performance of Chief Justice duties during vacancy, absence or inability. Therefore 'Article 224A.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Correct. This choice matches the controlling proposition: Article 223 covers performance of Chief Justice duties during vacancy, absence or inability. Therefore 'Article 223.' states the operative position.
- **C:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 223 covers performance of Chief Justice duties during vacancy, absence or inability. Therefore 'Article 229.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The stated actor, source or consequence fails when tested against: Article 223 covers performance of Chief Justice duties during vacancy, absence or inability. Therefore 'Article 231.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 10: Do not confuse leadership substitution with additional-judge or retired-judge capacity.

MCQ 11. Additional judge

An additional High Court judge under Article 224 may be appointed:

A. for life during arrears. B. only when the Chief Justice office is vacant. C. for a period not exceeding two years to meet temporary business increase or arrears. D. without the Article 217 appointment framework.

Answer: C.

Option explanations:

- **A:** Incorrect. This choice conflicts with the controlling proposition: Article 224 uses a maximum two-year additional appointment for temporary business or arrears. Therefore 'for life during arrears.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 224 uses a maximum two-year additional appointment for temporary business or arrears. Therefore 'only when the Chief Justice office is vacant.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Correct. This option states the operative rule: Article 224 uses a maximum two-year additional appointment for temporary business or arrears. Therefore 'for a period not exceeding two years to meet temporary business increase or arrears.' states the operative position.
- **D:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 224 uses a maximum two-year additional appointment for temporary business or arrears. Therefore 'without the Article 217 appointment framework.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 11: Temporary workload power cannot become indefinite insecure tenure.

MCQ 12. Retired judge sitting

Which combination is required under Article 224A?

A. Governor request and legislative approval. B. CJI request and Prime Minister approval. C. High Court collegium request without consent. D. Chief Justice request, prior President consent and the retired judge's consent.

Answer: D.

Option explanations:

- **A:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 224A requires the High Court Chief Justice's request, previous presidential consent and the retiree's consent. Therefore 'Governor request and legislative approval.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The stated actor, source or consequence fails when tested against: Article 224A requires the High Court Chief Justice's request, previous presidential consent and the retiree's consent. Therefore 'CJI request and Prime Minister approval.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 224A requires the High Court Chief Justice's request, previous presidential consent and the retiree's consent. Therefore 'High Court collegium request without consent.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Correct. This choice matches the controlling proposition: Article 224A requires the High Court Chief Justice's request, previous presidential consent and the retiree's consent. Therefore 'Chief Justice request, prior President consent and the retired judge's consent.' states the operative position.

Examiner trap 12: Article 224A is not Article 128 and does not deem the retiree a permanent judge.

MCQ 13. Article 225

Article 225 principally concerns:

A. continuance of existing High Court jurisdiction and law administered, subject to the Constitution and legislation. B. appointment of district judges. C. creation of an All India Judicial Service. D. Supreme Court advisory jurisdiction.

Answer: A.

Option explanations:

- **A:** Correct. This option states the operative rule: Article 225 preserves existing High Court jurisdiction and administration subject to constitutional and legislative change. Therefore 'continuance of existing High Court jurisdiction and law administered, subject to the Constitution and legislation.' states the operative position.
- **B:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 225 preserves existing High Court jurisdiction and administration subject to constitutional and legislative change. Therefore 'appointment of district judges.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This choice conflicts with the controlling proposition: Article 225 preserves existing High Court jurisdiction and administration subject to constitutional and legislative change. Therefore 'creation of an All India Judicial Service.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 225 preserves existing High Court jurisdiction and administration subject to constitutional and legislative change. Therefore 'Supreme Court advisory jurisdiction.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 13: Original civil jurisdiction must be traced to the relevant charter or statute, not assumed nationally.

MCQ 14. Article 226 scope

High Courts may issue writs under Article 226:

A. only against State Governments. B. for Fundamental Rights and for any other legal purpose. C. only after the Supreme Court refuses Article 32. D. only in criminal proceedings.

Answer: B.

Option explanations:

- **A:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 226 expressly reaches Fundamental Rights and any other purpose, subject to public-law and remedial limits. Therefore 'only against State Governments.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Correct. This choice matches the controlling proposition: Article 226 expressly reaches Fundamental Rights and any other purpose, subject to public-law and remedial limits. Therefore 'for Fundamental Rights and for any other legal purpose.' states the operative position.
- **C:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 226 expressly reaches Fundamental Rights and any other purpose, subject to public-law and remedial limits. Therefore 'only after the Supreme Court refuses Article 32.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The stated actor, source or consequence fails when tested against: Article 226 expressly reaches Fundamental Rights and any other purpose, subject to public-law and remedial limits. Therefore 'only in criminal proceedings.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 14: Wider purpose does not mean territorially unlimited or automatically available relief.

MCQ 15. Territorial jurisdiction

Article 226(2) permits jurisdiction where:

A. the petitioner resides, without more. B. the respondent prefers that forum. C. the cause of action arises wholly or partly within the territory, even if the authority is elsewhere. D. any national policy is mentioned.

Answer: C.

Option explanations:

- **A:** Incorrect. This choice conflicts with the controlling proposition: Article 226(2) turns on material cause-of-action facts arising wholly or in part within the territory. Therefore 'the petitioner resides, without more.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 226(2) turns on material cause-of-action facts arising wholly or in part within the territory. Therefore 'the respondent prefers that forum.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Correct. This option states the operative rule: Article 226(2) turns on material cause-of-action facts arising wholly or in part within the territory. Therefore 'the cause of action arises wholly or partly within the territory, even if the authority is elsewhere.' states the operative position.
- **D:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 226(2) turns on material cause-of-action facts arising wholly or in part within the territory. Therefore 'any national policy is mentioned.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 15: A trivial fact or residence alone cannot manufacture territorial nexus.

MCQ 16. Alternative remedy

The alternative-remedy rule under Article 226 is best described as:

A. an absolute constitutional ouster. B. a rule applicable only to habeas corpus. C. a statutory repeal of writ power. D. a self-imposed restraint with recognised exceptions such as rights, natural justice, jurisdiction and vires.

Answer: D.

Option explanations:

- **A:** Incorrect. The option collapses a distinction preserved by the governing rule: Whirlpool and Radha Krishan Industries treat alternative remedy as discretionary restraint with recognised exceptions. Therefore 'an absolute constitutional ouster.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The stated actor, source or consequence fails when tested against: Whirlpool and Radha Krishan Industries treat alternative remedy as discretionary restraint with recognised exceptions. Therefore 'a rule applicable only to habeas corpus.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This formulation overstates, understates or misattributes the rule: Whirlpool and Radha Krishan Industries treat alternative remedy as discretionary restraint with recognised exceptions. Therefore 'a statutory repeal of writ power.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Correct. This choice matches the controlling proposition: Whirlpool and Radha Krishan Industries treat alternative remedy as discretionary restraint with recognised exceptions. Therefore 'a self-imposed restraint with recognised exceptions such as rights, natural justice, jurisdiction and vires.' states the operative position.

Examiner trap 16: Failure to exhaust a remedy ordinarily affects entertainment, not the existence of Article 226 jurisdiction.

MCQ 17. Habeas corpus

Habeas corpus primarily tests:

A. the legality of detention. B. title to public office. C. performance of a public duty. D. validity of a completed tribunal order.

Answer: A.

Option explanations:

- **A:** Correct. This option states the operative rule: Habeas corpus secures release from unlawful detention and may address public or private custody. Therefore 'the legality of detention.' states the operative position.
- **B:** Incorrect. This formulation overstates, understates or misattributes the rule: Habeas corpus secures release from unlawful detention and may address public or private custody. Therefore 'title to public office.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This choice conflicts with the controlling proposition: Habeas corpus secures release from unlawful detention and may address public or private custody. Therefore 'performance of a public duty.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The option collapses a distinction preserved by the governing rule: Habeas corpus secures release from unlawful detention and may address public or private custody. Therefore 'validity of a completed tribunal order.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 17: It is not confined to detention ordered by a criminal court.

MCQ 18. Prohibition and certiorari

Which distinction is ordinarily correct?

A. Both writs only award damages. B. Prohibition prevents further jurisdictional error; certiorari generally quashes a completed defective order. C. Certiorari is available only against legislatures. D. Prohibition decides title to public office.

Answer: B.

Option explanations:

- **A:** Incorrect. This formulation overstates, understates or misattributes the rule: Prohibition is generally preventive, while certiorari is generally corrective after an order or proceeding. Therefore 'Both writs only award damages.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Correct. This choice matches the controlling proposition: Prohibition is generally preventive, while certiorari is generally corrective after an order or proceeding. Therefore 'Prohibition prevents further jurisdictional error; certiorari generally quashes a completed defective order.' states the operative position.
- **C:** Incorrect. The option collapses a distinction preserved by the governing rule: Prohibition is generally preventive, while certiorari is generally corrective after an order or proceeding. Therefore 'Certiorari is available only against legislatures.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The stated actor, source or consequence fails when tested against: Prohibition is generally preventive, while certiorari is generally corrective after an order or proceeding. Therefore 'Prohibition decides title to public office.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 18: The stage distinction is useful but the controlling concern remains jurisdictional or legal error.

MCQ 19. Tribunal review

L. Chandra Kumar (1997) held that:

A. all tribunals are unconstitutional. B. tribunal decisions bypass High Courts and go only to the Supreme Court. C. High Court review under Articles 226/227 is part of the Basic Structure and remains available over tribunals. D. Parliament may exclude all judicial review by ordinary law.

Answer: C.

Option explanations:

- **A:** Incorrect. This choice conflicts with the controlling proposition: L. Chandra Kumar preserved High Court review and treated tribunals as supplemental first-instance institutions. Therefore 'all tribunals are unconstitutional.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The option collapses a distinction preserved by the governing rule: L. Chandra Kumar preserved High Court review and treated tribunals as supplemental first-instance institutions. Therefore 'tribunal decisions bypass High Courts and go only to the Supreme Court.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Correct. This option states the operative rule: L. Chandra Kumar preserved High Court review and treated tribunals as supplemental first-instance institutions. Therefore 'High Court review under Articles 226/227 is part of the Basic Structure and remains available over tribunals.' states the operative position.
- **D:** Incorrect. This formulation overstates, understates or misattributes the rule: L. Chandra Kumar preserved High Court review and treated tribunals as supplemental first-instance institutions. Therefore 'Parliament may exclude all judicial review by ordinary law.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 19: Reviewability is not automatic invalidity and is not a routine factual appeal.

MCQ 20. Article 227

Which statement best describes Article 227?

A. It is limited to issuing habeas corpus. B. It applies only to executive departments. C. It is a statutory appeal from every order. D. It gives superintendence over territorial courts and tribunals, except Armed-Forces-law forums.

Answer: D.

Option explanations:

- **A:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 227 supplies judicial and administrative superintendence with an express Armed Forces exception. Therefore 'It is limited to issuing habeas corpus.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The stated actor, source or consequence fails when tested against: Article 227 supplies judicial and administrative superintendence with an express Armed Forces exception. Therefore 'It applies only to executive departments.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 227 supplies judicial and administrative superintendence with an express Armed Forces exception. Therefore 'It is a statutory appeal from every order.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Correct. This choice matches the controlling proposition: Article 227 supplies judicial and administrative superintendence with an express Armed Forces exception. Therefore 'It gives superintendence over territorial courts and tribunals, except Armed-Forces-law forums.' states the operative position.

Examiner trap 20: Superintendence is wide in source but restrained in exercise.

MCQ 21. Article 228

Article 228 is triggered when a subordinate-court case involves:

A. a substantial constitutional-interpretation question necessary for disposal. B. any disputed fact. C. a request by the Governor for advice. D. a transfer between two High Courts.

Answer: A.

Option explanations:

- **A:** Correct. This option states the operative rule: Article 228 permits withdrawal when a substantial constitutional-interpretation question is necessary to dispose of the case. Therefore 'a substantial constitutional-interpretation question necessary for disposal.' states the operative position.
- **B:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 228 permits withdrawal when a substantial constitutional-interpretation question is necessary to dispose of the case. Therefore 'any disputed fact.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This choice conflicts with the controlling proposition: Article 228 permits withdrawal when a substantial constitutional-interpretation question is necessary to dispose of the case. Therefore 'a request by the Governor for advice.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 228 permits withdrawal when a substantial constitutional-interpretation question is necessary to dispose of the case. Therefore 'a transfer between two High Courts.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 21: It is not the Supreme Court's Article 139A transfer power.

MCQ 22. Article 229

Who principally controls appointment of High Court officers and servants under Article 229?

A. The State Public Service Commission alone. B. The Chief Justice or an authorised court officer, subject to the Article's bounded provisos. C. The Chief Minister. D. Parliament.

Answer: B.

Option explanations:

- **A:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 229 places staff appointment with the Chief Justice or authorised officer and confines the Governor to specified roles. Therefore 'The State Public Service Commission alone.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Correct. This choice matches the controlling proposition: Article 229 places staff appointment with the Chief Justice or authorised officer and confines the Governor to specified roles. Therefore 'The Chief Justice or an authorised court officer, subject to the Article's bounded provisos.' states the operative position.
- **C:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 229 places staff appointment with the Chief Justice or authorised officer and confines the Governor to specified roles. Therefore 'The Chief Minister.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The stated actor, source or consequence fails when tested against: Article 229 places staff appointment with the Chief Justice or authorised officer and confines the Governor to specified roles. Therefore 'Parliament.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 22: Governor approval for financial service rules is not general executive control of the registry.

MCQ 23. UT jurisdiction

Which provision empowers Parliament to extend or exclude a High Court's jurisdiction in relation to a Union Territory?

A. Article 231 only. B. Article 241 only. C. Article 230. D. Article 232.

Answer: C.

Option explanations:

- **A:** Incorrect. This choice conflicts with the controlling proposition: Article 230 is the direct extension/exclusion provision; Articles 231 and 241 address related but distinct structures. Therefore 'Article 231 only.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 230 is the direct extension/exclusion provision; Articles 231 and 241 address related but distinct structures. Therefore 'Article 241 only.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Correct. This option states the operative rule: Article 230 is the direct extension/exclusion provision; Articles 231 and 241 address related but distinct structures. Therefore 'Article 230.' states the operative position.
- **D:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 230 is the direct extension/exclusion provision; Articles 231 and 241 address related but distinct structures. Therefore 'Article 232.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 23: Do not use repealed Article 232 as a current UT power.

MCQ 24. Common High Court

A common High Court for two or more States may be established under:

A. a Governor's ordinance. B. a Supreme Court administrative circular. C. a joint resolution of High Courts. D. a law of Parliament under Article 231.

Answer: D.

Option explanations:

- **A:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 231 authorises Parliament to establish a common High Court for States and/or Union Territories. Therefore 'a Governor's ordinance.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The stated actor, source or consequence fails when tested against: Article 231 authorises Parliament to establish a common High Court for States and/or Union Territories. Therefore 'a Supreme Court administrative circular.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 231 authorises Parliament to establish a common High Court for States and/or Union Territories. Therefore 'a joint resolution of High Courts.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Correct. This choice matches the controlling proposition: Article 231 authorises Parliament to establish a common High Court for States and/or Union Territories. Therefore 'a law of Parliament under Article 231.' states the operative position.

Examiner trap 24: A common court does not itself create permanent or circuit benches.

MCQ 25. District judge appointment

Article 233 places appointment, posting and promotion of district judges with:

A. the Governor in consultation with the High Court. B. the High Court acting alone. C. the State Public Service Commission alone. D. the Union Public Service Commission.

Answer: A.

Option explanations:

- **A:** Correct. This option states the operative rule: Article 233 shares formal gubernatorial action with constitutionally mandatory High Court consultation. Therefore 'the Governor in consultation with the High Court.' states the operative position.
- **B:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 233 shares formal gubernatorial action with constitutionally mandatory High Court consultation. Therefore 'the High Court acting alone.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This choice conflicts with the controlling proposition: Article 233 shares formal gubernatorial action with constitutionally mandatory High Court consultation. Therefore 'the State Public Service Commission alone.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 233 shares formal gubernatorial action with constitutionally mandatory High Court consultation. Therefore 'the Union Public Service Commission.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 25: Initial appointment language does not confer later career control on the executive.

MCQ 26. Direct district-judge route

For the direct Article 233(2) route, the Constitution requires, among other things:

A. five years as any government employee. B. at least seven years as advocate or pleader and High Court recommendation. C. a distinguished-jurist declaration. D. three years as Civil Judge only.

Answer: B.

Option explanations:

- **A:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 233(2) specifies seven years' advocacy/pleaderships and High Court recommendation for the direct route. Therefore 'five years as any government employee.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Correct. This choice matches the controlling proposition: Article 233(2) specifies seven years' advocacy/pleaderships and High Court recommendation for the direct route. Therefore 'at least seven years as advocate or pleader and High Court recommendation.' states the operative position.
- **C:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 233(2) specifies seven years' advocacy/pleaderships and High Court recommendation for the direct route. Therefore 'a distinguished-jurist declaration.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The stated actor, source or consequence fails when tested against: Article 233(2) specifies seven years' advocacy/pleaderships and High Court recommendation for the direct route. Therefore 'three years as Civil Judge only.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 26: The seven-year constitutional floor is not the whole recruitment rule.

MCQ 27. Article 234

Recruitment below district judge is made under rules after consultation with:

A. only the Governor's Council of Ministers. B. the UPSC and Supreme Court. C. the State Public Service Commission and the High Court. D. only the district administration.

Answer: C.

Option explanations:

- **A:** Incorrect. This choice conflicts with the controlling proposition: Article 234 requires Governor-made rules after consultation with both the State PSC and High Court. Therefore 'only the Governor's Council of Ministers.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 234 requires Governor-made rules after consultation with both the State PSC and High Court. Therefore 'the UPSC and Supreme Court.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Correct. This option states the operative rule: Article 234 requires Governor-made rules after consultation with both the State PSC and High Court. Therefore 'the State Public Service Commission and the High Court.' states the operative position.
- **D:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 234 requires Governor-made rules after consultation with both the State PSC and High Court. Therefore 'only the district administration.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 27: Neither consultee is constitutionally disposable.

MCQ 28. Article 235

Which authority holds constitutional control over district and subordinate courts?

A. The State Home Department. B. The Governor personally. C. The State Public Service Commission. D. The High Court under Article 235.

Answer: D.

Option explanations:

- **A:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 235 vests control, including core career and disciplinary dimensions, in the High Court. Therefore 'The State Home Department.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The stated actor, source or consequence fails when tested against: Article 235 vests control, including core career and disciplinary dimensions, in the High Court. Therefore 'The Governor personally.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 235 vests control, including core career and disciplinary dimensions, in the High Court. Therefore 'The State Public Service Commission.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Correct. This choice matches the controlling proposition: Article 235 vests control, including core career and disciplinary dimensions, in the High Court. Therefore 'The High Court under Article 235.' states the operative position.

Examiner trap 28: State finance and formal orders do not negate High Court control.

MCQ 29. Article 236

The constitutional expression 'judicial service' means:

A. a service exclusively intended to fill district-judge and lower civil judicial posts. B. every legal post under the State. C. only High Court registry service. D. all executive magistrates.

Answer: A.

Option explanations:

- **A:** Correct. This option states the operative rule: Article 236 defines judicial service by its exclusive destination in district-judge and lower civil judicial posts. Therefore 'a service exclusively intended to fill district-judge and lower civil judicial posts.' states the operative position.
- **B:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 236 defines judicial service by its exclusive destination in district-judge and lower civil judicial posts. Therefore 'every legal post under the State.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This choice conflicts with the controlling proposition: Article 236 defines judicial service by its exclusive destination in district-judge and lower civil judicial posts. Therefore 'only High Court registry service.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 236 defines judicial service by its exclusive destination in district-judge and lower civil judicial posts. Therefore 'all executive magistrates.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 29: Legal work or magisterial title alone does not place a person in the judicial service.

MCQ 30. Gram Nyayalayas

Which statement is correct under the Gram Nyayalayas Act, 2008?

A. Every village constitutionally must have one. B. A notified Gram Nyayalaya has only the civil and criminal jurisdiction assigned by the Act and Schedules. C. It may try every non-compoundable offence. D. It is a High Court bench.

Answer: B.

Option explanations:

- **A:** Incorrect. This formulation overstates, understates or misattributes the rule: Gram Nyayalayas are statutory notified courts with scheduled, bounded civil and criminal jurisdiction. Therefore 'Every village constitutionally must have one.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Correct. This choice matches the controlling proposition: Gram Nyayalayas are statutory notified courts with scheduled, bounded civil and criminal jurisdiction. Therefore 'A notified Gram Nyayalaya has only the civil and criminal jurisdiction assigned by the Act and Schedules.' states the operative position.
- **C:** Incorrect. The option collapses a distinction preserved by the governing rule: Gram Nyayalayas are statutory notified courts with scheduled, bounded civil and criminal jurisdiction. Therefore 'It may try every non-compoundable offence.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Incorrect. The stated actor, source or consequence fails when tested against: Gram Nyayalayas are statutory notified courts with scheduled, bounded civil and criminal jurisdiction. Therefore 'It is a High Court bench.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 30: Grassroots purpose does not create universal establishment or unlimited subject jurisdiction.

MCQ 31. Commercial Divisions

A Commercial Division in a High Court under the 2015 Act is linked to:

A. every writ petition of commercial importance. B. all criminal prosecutions involving companies. C. commercial disputes of specified value where the High Court has ordinary original civil jurisdiction. D. automatic transfer of every district suit.

Answer: C.

Option explanations:

- **A:** Incorrect. This choice conflicts with the controlling proposition: The Commercial Courts Act ties High Court Commercial Divisions to specified-value disputes and existing ordinary original civil jurisdiction. Therefore 'every writ petition of commercial importance.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The option collapses a distinction preserved by the governing rule: The Commercial Courts Act ties High Court Commercial Divisions to specified-value disputes and existing ordinary original civil jurisdiction. Therefore 'all criminal prosecutions involving companies.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Correct. This option states the operative rule: The Commercial Courts Act ties High Court Commercial Divisions to specified-value disputes and existing ordinary original civil jurisdiction. Therefore 'commercial disputes of specified value where the High Court has ordinary original civil jurisdiction.' states the operative position.
- **D:** Incorrect. This formulation overstates, understates or misattributes the rule: The Commercial Courts Act ties High Court Commercial Divisions to specified-value disputes and existing ordinary original civil jurisdiction. Therefore 'automatic transfer of every district suit.' introduces a wrong actor, source, threshold, scope or consequence.

Examiner trap 31: Do not universalise a charter-specific High Court arrangement.

MCQ 32. AIJS

Which statement accurately describes an All India Judicial Service?

A. It already recruits Civil Judges nationwide. B. It may be created by executive order. C. Article 312 requires unanimous State consent. D. Article 312 enables creation after a Rajya Sabha two-thirds-present-and-voting resolution and parliamentary law, but excludes posts below district judge.

Answer: D.

Option explanations:

- **A:** Incorrect. The option collapses a distinction preserved by the governing rule: Article 312 supplies a special federal route and clause (3) preserves the district-judge floor. Therefore 'It already recruits Civil Judges nationwide.' introduces a wrong actor, source, threshold, scope or consequence.
- **B:** Incorrect. The stated actor, source or consequence fails when tested against: Article 312 supplies a special federal route and clause (3) preserves the district-judge floor. Therefore 'It may be created by executive order.' introduces a wrong actor, source, threshold, scope or consequence.
- **C:** Incorrect. This formulation overstates, understates or misattributes the rule: Article 312 supplies a special federal route and clause (3) preserves the district-judge floor. Therefore 'Article 312 requires unanimous State consent.' introduces a wrong actor, source, threshold, scope or consequence.
- **D:** Correct. This choice matches the controlling proposition: Article 312 supplies a special federal route and clause (3) preserves the district-judge floor. Therefore 'Article 312 enables creation after a Rajya Sabha two-thirds-present-and-voting resolution and parliamentary law, but excludes posts below district judge.' states the operative position.

Examiner trap 32: A constitutional enabling provision is not proof that the service exists.

PYQS AND ANSWER PRACTICE

Audited previous-year routes

PYQ-M1 - UPSC GS-II 2024, Q2 - direct access-to-justice route

Question (verified exact wording): "Explain and distinguish between Lok Adalats and Arbitration Tribunals. Whether they entertain civil as well as criminal cases?"

10 marks | 150 words

Model answer: Lok Adalats are statutory settlement forums under the Legal Services Authorities Act, 1987; arbitral tribunals are consensual adjudicatory forums under the Arbitration and Conciliation Act, 1996. An ordinary Lok Adalat facilitates compromise in pending or pre-litigation disputes. Its consensual award is final, binding and decree-like; if settlement fails, it cannot decide the contest on merits. It may handle civil disputes and compoundable criminal offences, never non-compoundable offences. An arbitral tribunal derives authority from an arbitration agreement, hears an arbitrable civil or commercial dispute and renders an award subject to limited statutory challenge; it does not conduct criminal prosecution. Permanent Lok Adalats are a distinct exception for specified public-utility-service disputes: after failed conciliation they possess bounded adjudicatory power under the 1987 Act. Thus both reduce ordinary-court burden, but one is public access-oriented settlement and the other private consensual adjudication.

Why this earns marks: It distinguishes source, consent, method, outcome and civil/criminal boundaries.

PYQ-M2 - UPSC GS-II 2025, Q13 - supporting appointments route

Verified neutral demand: Critically examine India's collegium system of judicial appointments in comparison with the United States.

15 marks | 250 words

Model answer: India's higher-judiciary appointment system seeks insulation from political control through judicial primacy. Article 217 formally vests High Court appointment in the President after specified consultations; the Second Judges Case (1993) and Third Judges Reference (1998) converted consultation into a collegium process. High Court proposals begin with the Chief Justice and two senior colleagues, then reach the Supreme Court collegium of the CJI and two senior-most judges, alongside executive inputs. The 2015 NJAC judgment invalidated the enacted

replacement because judicial independence was imperilled.

The United States uses presidential nomination and Senate confirmation. Public hearings and political accountability are clearer, but partisan polarisation can dominate selection. India's model better limits direct party control, yet opacity, delay, weak diversity disclosure and diffused responsibility reduce legitimacy.

Reform should preserve judicial primacy while publishing criteria and timelines, creating a permanent appointments secretariat, widening the search pool, recording privacy-sensitive reasons and requiring timely executive responses. The objective is accountable independence, not transplanting a politically polarised confirmation model.

Why this earns marks: It compares actors, values, risks and feasible reform without implying that every commission is unconstitutional.

PYQ-P1 - UPSC Prelims 2024, routed question 83

Verified demand: Writ of Prohibition.

Official Set-A answer: C.

Answer route: Prohibition prevents a lower court or tribunal from continuing without or beyond jurisdiction; certiorari generally quashes a completed defective decision.

PYQ-P2 - UPSC Prelims 2019, routed High Court jurisdiction question

Verified demand: High Court jurisdiction and Supreme Court review powers.

Answer withheld pending official UPSC key.

Answer route: Article 226 covers Fundamental Rights and other legal purposes; Supreme Court appellate authority does not extinguish High Court constitutional jurisdiction; L. Chandra Kumar protects Articles 226/227 review.

PYQ-P3 - UPSC Prelims 2021, routed retired-judge question

Verified demand: Retired Supreme Court judges and High Court powers.

Answer withheld pending official UPSC key.

Answer route: Article 224A concerns a retired High Court judge requested to sit in a High Court; Article 128 separately concerns retired Supreme Court judges sitting in the Supreme Court.

Exactly six original Mains questions with model answers

Original Q1 - 10 marks, answer in not more than 150 words

Question: Explain why Article 226 makes the High Court the everyday constitutional court.

Model answer: Article 226 makes the High Court the everyday constitutional court because it combines local access with broad remedial purpose. Unlike Article 32, which is itself a Fundamental Right and primarily enforces Fundamental Rights in the Supreme Court, Article 226 authorises writs for Fundamental Rights and "any other purpose." Article 226(2) also permits jurisdiction where material cause of action arises wholly or partly within the territory. Citizens can therefore challenge unlawful detention, refusal of statutory duty, jurisdictional error and invalid public action near the place of injury. L. Chandra Kumar (1997) further protects review under Articles 226/227 as part of the Basic Structure. Yet the power is not limitless: relief is discretionary, territorial nexus is necessary, and an efficacious alternative remedy ordinarily invites restraint subject to recognised exceptions. Article 226 is thus wider in purpose, locally accessible and constitutionally indispensable.

Original Q2 - 10 marks, answer in not more than 150 words

Question: Distinguish Articles 226 and 227.

Model answer: Article 226 is principally a public-law remedial jurisdiction; Article 227 is a supervisory jurisdiction over territorial courts and tribunals. Under Article 226, a High Court issues directions, orders and writs to enforce Fundamental Rights and other legal rights. Territorial cause of action matters, and relief remains discretionary. Article 227 enables judicial and administrative superintendence, including correction of grave jurisdictional or procedural failure, calling returns and framing general rules, subject to the Armed-Forces-law exception. Radhey Shyam (2015) cautions against treating ordinary civil-court orders as Article 226 writ targets; correction ordinarily lies under Article 227 or statutory procedure. Neither provision creates a routine second appeal. L. Chandra Kumar protects their review role as part of the Basic Structure. In short, Article 226 asks whether public power has violated law; Article 227 keeps

inferior adjudicatory institutions within lawful bounds.

Original Q3 - 15 marks, answer in not more than 250 words

Question: Examine how Articles 233-235 protect subordinate-judiciary independence.

Model answer: Articles 233-235 distribute recruitment and career control so that the State executive cannot dominate judges who routinely decide cases involving government. Article 233 places appointment, posting and promotion of district judges with the Governor in consultation with the High Court. For direct recruitment, clause (2) requires the constitutional advocacy threshold and High Court recommendation. Article 234 governs recruitment below district judge through Governor-made rules after consultation with both the State Public Service Commission and High Court. Article 235 then vests control over district and subordinate courts in the High Court, covering posting, promotion, leave and disciplinary authority.

Chandra Mohan (1966) connected this design to Article 50 and rejected executive officers entering district judgeship through an unconstitutional route. Ranga Muhammad (1967) located transfer of serving district judges within Article 235, and Nripendra Nath Bagchi treated disciplinary control as integral.

The arrangement is not exclusive judicial administration: State law, finance, infrastructure, formal gubernatorial orders and valid appeal rights remain relevant. High Court control must also observe natural justice. The constitutional achievement is therefore shared appointment with judicially secured career control, preserving both democratic administration and adjudicative independence.

Original Q4 - 15 marks, answer in not more than 250 words

Question: Critically examine constitutional safeguards for High Court independence.

Model answer: High Court independence rests on mutually reinforcing personnel, financial, jurisdictional and administrative safeguards. Article 217 provides presidential appointment through constitutionally specified consultation; the Judges Cases add judicial primacy. Judges serve until sixty-two and do not hold office during executive pleasure. Article 218 applies the stringent Article 124(4)-(5) removal route based on proved misbehaviour or incapacity. Article 221 protects service conditions, while Article 229 places registry appointments with the Chief Justice and charges High Court administrative expenses on the State Consolidated Fund. Article 222 transfer requires CJI consultation. Articles 215, 226, 227 and 235 protect contempt authority, judicial review, superintendence and control over the district judiciary.

Practical independence nevertheless faces collegium opacity, delayed appointments, perceived punitive transfers, weak diversity, vacancies and infrastructure dependence. Total secrecy is not required for independence, while total disclosure may harm candidate privacy. Reform should preserve judicial primacy but institutionalise criteria, timelines, a permanent secretariat, diversity search, reasoned communication and predictable infrastructure funding.

Thus the Constitution strongly protects adjudication from direct political retaliation; accountable and timely administration must make that formal protection effective.

Original Q5 - 20 marks, answer in not more than 250 words

Question: Evaluate the case for an All India Judicial Service.

Model answer: Article 312 enables an All India Judicial Service only after the Rajya Sabha declares by a two-thirds majority of members present and voting that national interest requires it, followed by parliamentary law. Article 312(3) excludes posts below district judge. No AIJS exists as of 7 September 2026.

The case for AIJS is regular recruitment, common minimum standards, a wider national talent pool, planned training and greater mobility. It may reduce recurring district-judge vacancies and diversify recruitment beyond local professional networks. National data and a predictable calendar could support workforce planning.

However, district judging demands command of State law, local language and procedure. States and High Courts also raise federal, reservation, seniority, promotion and cadre-control concerns. A central examination cannot repair courtrooms, staff, prosecution or retention. Most importantly, AIJS design cannot dilute High Court consultation and control under Articles 233 and 235.

A viable model would remain district-judge-level, allocate officers to State cadres, require local-language competence, protect State reservation, preserve High Court appraisal and promotion, and coordinate training through judicial academies. AIJS is therefore defensible as a carefully federal professional service, not as centralisation of the

subordinate judiciary.

Original Q6 - 20 marks, answer in not more than 250 words

Question: Judicial pendency is a governance problem, not merely a judicial problem. Analyse with reference to High Courts and subordinate courts.

Model answer: Pendency is the accumulated stock of unresolved cases; delay is the time taken in an individual case. Both arise from interactions across government, courts and litigants. The Department of Justice's 1 July 2026 snapshot recorded 1,122 sanctioned High Court posts, 781 working judges and 341 vacancies, showing a capacity gap, but vacancies alone do not explain the queue.

Government departments generate repetitive litigation and delayed appeals. Police investigation, prosecution, summons, forensic support and prison production affect criminal trials. Court staff, records, translation, infrastructure, adjournments and fragmented case management affect throughput. Complex procedure and unequal legal assistance increase citizen costs.

Reform must therefore combine timely appointments under Articles 217 and 233-234, High Court control under Article 235, Malik Mazhar recruitment calendars, differentiated case tracks, reasoned adjournment control, mediation where lawful, government-litigation discipline and staff/infrastructure investment. e-Courts Phase III can digitise records, filing and payments, while NJDG supports diagnosis. Yet digital-only design can exclude poor, rural, disabled or language-disadvantaged litigants.

The goal is not disposal at any cost. Rights-sensitive case management, adequate reasons and fair hearing must accompany speed. Pendency falls sustainably only when every institution producing or processing litigation is accountable.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

A. Federalism and common High Courts

A common High Court demonstrates cooperative institutional federalism: judicial capacity may be shared even when legislative, executive and service structures remain distinct. The advantage is coherence and resource pooling; the risk is perceived distance, language exclusion or unequal bench access. The answer must therefore connect Article 231 with statute-specific territorial and bench design rather than treating a common court as administrative merger.

B. Collegium reform without executive capture

The Second and Third Judges Cases prioritise judicial independence; the NJAC decision invalidated the enacted replacement. Reform questions should separate constitutional permissibility from institutional design. Transparent eligibility criteria, a permanent secretariat, documented timelines, diversity search, privacy-sensitive reasons and predictable executive responses can improve legitimacy without converting appointments into partisan confirmation.

C. Writ discretion and proportional institutional restraint

Article 226 combines wide power with self-restraint. Territorial nexus, alternative remedy, delay, disputed facts and forum conveniens are distinct filters. A High Court should intervene early against void action, rights violations or natural-justice failure, yet avoid becoming the first appellate authority for every statutory dispute. The analytical phrase is 'jurisdiction remains; discretionary exercise is structured'.

D. Professionalising the district judiciary

Recruitment must be read with training, mentoring, language competence, promotion, infrastructure and court management. Rejanish expands a direct-recruitment eligibility pathway; AIJA 2025 adds prospective practice experience for entry-level civil judges; Malik Mazhar targets calendars. None alone resolves vacancies. Reform succeeds only when Articles 233-235 control is paired with predictable State funding and data-based workforce planning.

E. Digital constitutionalism

e-Courts can reduce distance and administrative opacity, but digital procedure must preserve open justice, accessible formats, language support, privacy, cyber-security and meaningful hearing. Hybrid access and e-Sewa Kendras matter because device ownership is not equivalent to procedural capability. Use technology as an institutional multiplier, never as evidence that adjudicative capacity or equality is already solved.

CONSOLIDATED REGISTER NOTES

Constitutional spine: Articles 214-237

Article	Decoded rule
214	High Court for each State, read with Article 231's common-court power.
215	Every High Court is a court of record with contempt power.
216	Chief Justice plus such other judges as are appointed; no fixed uniform strength.
217	Presidential appointment, specified consultation, qualifications, tenure and age determination.
218	Applies Article 124(4)-(5) removal machinery to High Court judges.
219	Third Schedule oath before Governor or authorised person.
220	Former permanent judge may practise only before Supreme Court and other High Courts.
221	Salaries/allowances and protected service conditions, subject to constitutional exception.
222	Presidential transfer after CJI consultation; compensatory allowance may follow.
223	Acting Chief Justice during vacancy, absence or inability.
224	Additional judges for temporary business/arrears, maximum two years; acting judges for absence.
224A	Retired High Court judge may sit on Chief Justice request, prior President consent and own consent.
225	Existing jurisdiction and law administered continue subject to Constitution and legislation.
226	Writs for Fundamental Rights and any other purpose; cause-of-action and ex parte safeguards.
227	Judicial and administrative superintendence; Armed-Forces-law exception.
228	Withdrawal of cases needing substantial constitutional interpretation.
229	Chief Justice-led staff administration; bounded Governor role; charged expenses.
230	Parliament may extend/exclude High Court jurisdiction to/from a Union Territory.
231	Parliament may establish a common High Court for States and/or Union Territories.
232	Repealed by the Constitution (Seventh Amendment) Act, 1956.
233	District-judge appointment/posting/promotion: Governor with High Court consultation.
233A	Twentieth Amendment, 1966 validation of specified past appointments and judgments.
234	Other judicial-service recruitment: Governor rules after SPSC and High Court consultation.
235	High Court control over district and subordinate courts.
236	Defines district judge and judicial service.
237	Governor may apply the Chapter to classes of magistrates by notification.

Appointment and independence recall

- Article 217 text: President + CJI + Governor; High Court Chief Justice additionally for puisne judges.
- Second Judges Case (1993): judicial primacy; Third Judges Reference (1998): plural collegium.
- NJAC/99th Amendment invalidated in 2015 because the enacted structure damaged judicial independence.
- Eligibility: Indian citizen plus ten years judicial office or ten years High Court advocacy; no distinguished-jurist route.
- Oath: Governor/authorised person. Retirement: 62. Resignation: President.
- Removal: Article 218 read with Article 124(4)-(5), proved misbehaviour/incapacity and special majority.
- Transfer: Article 222; consent not textual; institutional consultation and public interest constrain.
- Temporary capacity: Articles 223, 224 and 224A have distinct triggers and safeguards.

Jurisdiction and writ recall

- Article 225 jurisdiction is plural and source-specific; original civil jurisdiction is not universal.
- Article 226 is wider than Article 32 in purpose, but territorially bounded and discretionary.
- Article 226(2): material cause of action wholly or partly within territory.
- Alternative remedy is restraint, not extinction; remember rights, natural justice, jurisdiction and vires exceptions.
- Article 226(3) is a specific two-week ex parte vacation safeguard.
- Article 227 is supervision, not routine appeal. Article 228 is constitutional-question withdrawal.
- L. Chandra Kumar: tribunal decisions remain under High Court review; review is Basic Structure.
- High Court Bar Association Allahabad (2024): no universal automatic six-month expiry of interim stays.

Subordinate judiciary and special forums

- Article 233: Governor formally appoints district judges in consultation with High Court.
- Rejanish (2025): qualifying prior advocacy of serving judicial officers recognised prospectively for direct recruitment, subject to rules.
- Article 234: State PSC plus High Court consultation for lower judicial service.
- AIJA (2025): prospective three-year Bar practice for Civil Judge (Junior Division).
- Article 235: High Court career and disciplinary control; Ranga Muhammad protects transfer control.
- Chandra Mohan links Articles 233-234 with Article 50 separation.
- Article 312 can create AIJS only at district-judge level or above; no AIJS exists.
- Gram Nyayalayas, Family Courts and Commercial Courts are separate statute-bound designs.

Capacity, access and reform

- Dated DoJ snapshot, 1 July 2026: 1,122 sanctioned, 781 working, 341 vacant High Court posts.
- e-Courts Phase III: 2023-2027, Rs 7,210 crore; digitisation, e-filing, e-payments, paperless courts and e-Sewa Kendras.
- NJDG gives dated administrative data; it does not decide cases.
- Pendency reform requires judges, staff, service, investigation, prosecution, case management and government-litigation discipline.
- Digital access must remain assisted, multilingual, accessible, privacy-protecting and available alongside physical access.

Last-minute traps

1. Article 214 does not negate Article 231 common High Courts.
2. Article 232 is repealed.
3. Distinguished jurist is not a High Court qualification.
4. High Court retirement is 62; Supreme Court retirement is 65.
5. Article 226 is wider in purpose, not in every dimension.
6. Alternative remedy is not an absolute jurisdictional bar.
7. Article 227 is not a routine appeal.
8. Original civil jurisdiction and benches are court-specific.
9. Governor appoints district judges, but High Court consultation/control is constitutionally decisive.
10. AIJS has not been created and cannot include posts below district judge.
11. Ordinary Lok Adalat cannot decide a contested case on merits.
12. Technology does not prove universal access or reduced pendency.

COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM

PANEL 1/12 - CONSTITUTIONAL LOCATION AND ORIGIN

- +-- 1861 High Courts Act; Calcutta, Bombay and Madras opened in 1862; Allahabad in 1866.
- +-- Articles 214-231 create and protect High Courts; Articles 233-237 protect subordinate courts.
- +-- Integrated hierarchy: Supreme Court -> High Court -> district and subordinate courts.
- \-- Core line: territorial constitutional adjudication with national doctrinal unity.

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v

PANEL 2/12 - ESTABLISHMENT, COMPOSITION AND COMMON COURTS

- +-- Article 214: High Court for each State; Article 216: Chief Justice plus other judges.
- +-- Article 231: Parliament may establish a common High Court for States and/or Union Territories.
- +-- Seventh Amendment, 1956 reorganised the common-court provisions; Article 232 stands repealed.
- \-- Dated control: 25 High Courts on 7 September 2026; no one-State-one-court inference.

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PANEL 3/12 - APPOINTMENTS AND COLLEGIUM

- +-- Article 217: President appoints after consultation with CJI and Governor; HC Chief Justice also for puisne judges.
- +-- Second Judges Case (1993): judicial primacy; Third Judges Reference (1998): plural consultation.
- +-- HC initiation: Chief Justice plus two senior colleagues; SC stage: CJI plus two senior-most judges.
- \-- 99th Amendment/NJAC Act invalidated in 2015; collegium remains operative, not textually named.

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PANEL 4/12 - QUALIFICATIONS, TENURE AND INDEPENDENCE

- +-- Article 217(2): citizen plus 10 years judicial office OR 10 years High Court advocacy.
- +-- Articles 219-221: oath before Governor/appointee; retirement 62; restricted later practice; protected conditions.
- +-- Article 218 applies Article 124(4)-(5) removal: proved misbehaviour/incapacity and parliamentary special majority.
- \-- Article 229(3) charges High Court expenses on the State Consolidated Fund; Article 360 is the salary exception.

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PANEL 5/12 - TRANSFER AND TEMPORARY JUDGES

- +-- Article 222: President transfers after CJI consultation; consent not an express constitutional condition.
- +-- Sankalchand Sheth (1977) and Third Judges Reference require public-interest institutional safeguards.
- +-- Article 223 Acting CJ; Article 224 additional judge up to two years or acting judge for absence.
- \-- Article 224A: retired HC judge sits on CJ request, prior presidential consent and retiree consent.

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PANEL 6/12 - RECORD, JURISDICTION AND SOURCE FIREWALL

- +-- Article 215: court of record plus constitutional contempt power; 1971 Act regulates it.
- +-- Article 225 preserves existing jurisdiction subject to Constitution and competent legislation.
- +-- Original civil, appellate, election, admiralty and commercial powers are charter/statute-specific.
- \-- Never universalise one High Court's original jurisdiction, bench arrangement or pecuniary rule.

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PANEL 7/12 - ARTICLE 226 WRIT JURISDICTION

- +-- Article 226 covers Fundamental Rights and any other legal purpose; Article 32 is a Fundamental Right for FR enforcement.
- +-- Article 226(2): material cause of action wholly or partly in territory; residence alone is insufficient.
- +-- Whirlpool (1998)/Radha Krishan (2021): alternative remedy is restraint, not jurisdictional extinction.
- \-- Five writs: habeas corpus, mandamus, prohibition, certiorari and quo warranto; PIL relaxes standing.

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PANEL 8/12 - REVIEW, TRIBUNALS AND SUPERVISION

- +-- L. Chandra Kumar (1997): Articles 226/227 review is Basic Structure; tribunals supplement courts.
- +-- Madras Bar Association cases: tribunal independence, tenure and selection must meet judicial standards.
- +-- Article 227: judicial/administrative superintendence, no routine appeal; Armed-Forces-law exception.
- \-- Article 228: withdraw substantial constitutional question; decide case or return after ruling.

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v

PANEL 9/12 - ADMINISTRATION, TERRITORY AND BENCHES

- +-- Article 229: Chief Justice controls staff; bounded Governor role; expenses charged.
- +-- Article 230: Parliament extends/excludes High Court jurisdiction to/from a Union Territory.
- +-- Article 231 common High Court; Article 241 separate UT court route.
- \-- Principal seat, permanent bench and circuit sitting depend on specific statutes/orders and are not synonyms.

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v

PANEL 10/12 - SUBORDINATE JUDICIARY: ARTICLES 233-237

- +-- Article 233: Governor plus High Court consultation; direct route has seven-year advocacy and recommendation.
- +-- Article 233A: Twentieth Amendment, 1966 validation of specified past appointments and judgments.
- +-- Article 234: Governor rules after SPSC and High Court consultation; Article 235: High Court career control.
- \-- Articles 236-237 define judicial service and permit notified application to classes of magistrates; Article 50 separates.

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v

PANEL 11/12 - RECRUITMENT, ACCESS AND SPECIALISED COURTS

- +-- Chandra Mohan (1966): executive officers cannot bypass the judicial-service scheme.
- +-- Ranga Muhammad (1967): transfer of serving district judges lies within Article 235 control.
- +-- AIJA series, Malik Mazhar Sultan and 2025 rulings address conditions, calendars, practice and promotion.
- \-- NALSA/Lok Adalat, Gram Nyayalaya, Family and Commercial Courts remain statute-bound institutions.

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PANEL 12/12 - REFORM, TRAPS AND ANSWER SPINE

- +-- Article 312 can create AIJS only after Rajya Sabha resolution and law; Article 312(3) excludes posts below district judge.
- +-- e-Courts Phase III: 2023-2027, Rs 7,210 crore; NJDG is dated administrative evidence, not adjudication.

+-- High Court Bar Association Allahabad (2024): no automatic six-month vacation of all interim stays.
\-- Answer spine: source -> mechanism -> named authority -> consequence -> limitation -> targeted reform.